

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of

CERTAIN WEARABLE DEVICES

Inv. No. 337-TA-1478

**COMPLAINANTS' OPPOSITION TO RESPONDENTS' MOTION IN *LIMINE* NO. 3
TO PRECLUDE SAMSUNG FROM PRESENTING UNTIMELY EVIDENCE AND
ARGUMENT OF SEA'S PURPORTED AUTHORITY TO PRACTICE THE ASSERTED
PATENTS**

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Complainants Samsung Electronics Co., Ltd. (“SEC”) and Samsung Electronics America, Inc. (“SEA”) (collectively, “Samsung” or “Complainants”) respectfully submit that Respondents’ Ouraring Inc. and Oura Health Oy’s (collectively, “Oura” or “Respondents”) Motion in *Limine* No. 3 (“MIL”) should be denied. Oura’s MIL, which seeks to preclude Samsung from presenting evidence and argument of SEA’s authority to practice the Asserted Patents, is a summary determination motion on standing disguised as a motion *in limine*. It misorients the issues and mischaracterizes the law on standing and the economic prong of the domestic industry requirement. Moreover, there is no “new” evidence or argument to preclude. And finally, Oura failed to demonstrate any actual prejudice it suffered as a result of the statement in Samsung’s prehearing brief. Each of these issues presents a separate basis to deny Oura’s MIL.

I. FACTUAL BACKGROUND

This case involves two Complainants: SEC and SEA. Samsung’s Complaint, filed on December 12, 2025, identified SEC as “the assignee of the Samsung patents with the right to sue for all past, present, and future infringement thereof” and “own[er of] all rights, titles, and interest in each of the patents.” Exhibit S (Complaint), ¶¶4, 8. The Complaint describes SEA as “a wholly-owned subsidiary of SEC.” *Id.*, ¶9. The Complaint goes on to explain¹:

10. SEC is one of the largest manufacturers of wearable devices in the world and has long focused on the United States as a critical market for its products. ***SEC established SEA to engage in activities in the United States related to certain of Samsung’s product lines.***

11. SEA supplies mobile products and services, wearables, and consumer electronics products and services in the United States market. In doing so, SEA is involved in numerous development and commercialization activities, including engineering, research, development, testing, customer service, importation, sales, marketing, and distribution of products in the United States, including wearables and smartphones.

¹ Samsung filed a supplemental complaint on December 31, 2025, that made no changes to any of the information referenced or quoted herein.

[REDACTED]

Id., ¶¶10-11 (emphasis added). The declaration attached to the Complaint, from SEA’s corporate representative Christopher Martinez further noted that:

SEA ... is a subsidiary of Samsung Electronics Co., Ltd.... SEA supplies mobile products and services, wearables, and consumer electronics products and services in the United States market.... SEC is one of the largest providers by volume of wearables and smartphones in the world, and SEA is one of the top providers by volume of wearables and smartphones in the United States.

Exhibit T (Declaration of Christopher Martinez), ¶2.

As required by Commission Rule 210.12(a)(9)(iii), Samsung’s Complaint also identified the licensees to the Asserted Patents. *See* Exhibit U (Confidential Exhibit 10 to Complaint).

As Oura notes in its MIL, on April 10, 2026 and in response to Oura’s Interrogatory No. 13 regarding “any ownership interests in any Asserted Patents,” Samsung reiterated the above information, incorporating by reference Samsung’s Complaint, assignment records for the Asserted Patents, list of licensees, and copies of such licenses. *See* Exhibit V (Samsung’s 3rd Supplemental Interrogatory Responses) at 33-35. When Oura propounded another duplicative Interrogatory No. 21 regarding “any rights to use” the Asserted Patents, Samsung incorporated its response to Interrogatory No. 13 by reference. Exhibit W (Samsung’s Responses to Oura’s 2nd Set of Interrogatories) at 13-14. In several meet and confers during fact discovery, Samsung repeatedly explained to Oura’s counsel that SEA’s “authorization” stemmed from its status as SEC’s wholly-owned subsidiary and seller of Samsung products in the United States, as disclosed in its Complaint and discovery responses.

On May 21, 2026, Mr. Martinez testified extensively on the relationship between SEC and SEA, as well as SEA’s activities and investments relating to the Domestic Industry Products. *See* Exhibit X (Martinez Dep. Tr.) at 28-29, 36-45, 51-185. On May 27, 2026, Samsung’s corporate representative on licensing, Mr. Minsoo Kim, testified that while he was not aware of any [REDACTED]

[REDACTED] relating to the Asserted Patents, he understood that entities like

[REDACTED]

SEA, as SEC's wholly-owned subsidiary, can practice the asserted patents in the U.S. *See* Exhibit M (Minsoo Kim Dep. Tr.) at 68-70.

Many of these facts were likewise disclosed during Investigation No. 337-TA-1468, brought by Oura against SEA and SEC. For instance, Samsung and Oura filed a Joint Stipulation on Importation and Inventory on March 30, 2026. *See* Exhibit Y (Joint Stipulation). In that Stipulation, Samsung makes several representations regarding SEA, including that:

[REDACTED]

[REDACTED]

[REDACTED]

Id. at 2-3. In Confidential Exhibit B to the Joint Stipulation, Samsung also appended several exemplary Customs & Boarder Control 7501 forms relating to the importation of Samsung mobile and wearable products, identifying [REDACTED]:

[REDACTED]

Id. at 45 (SAMS406-0073845).

II. ARGUMENT

Oura's MIL should be denied for four independent reasons. First, the MIL is an improper motion for summary determination disguised as a motion *in limine*. Second, it mischaracterizes and misunderstands the applicable law on standing at the ITC. Indeed, Oura cites no actual

authority for its central argument—that SEA, a named complainant here, must establish separate standing for its economic investments to count towards Samsung’s domestic industry in this investigation. As explained below, that is simply not the law. Third, there is no “new” evidence or argument to preclude. Finally, Oura is not prejudiced by anything disclosed in Samsung’s prehearing brief.

A. Oura’s MIL Should Be Denied as an Improper Motion for Summary Determination

The issue for a motion *in limine* is whether evidence should be excluded. *Components for Certain Environmentally-Protected LCD Digital Displays and Products Containing Same*, Inv. No. 337-TA-1349, Order No. 25, 2023 WL 6786582 at *4 (Sept. 25, 2023). It is improper for a party to seek determination on the *merits* or *sufficiency* of evidence in a motion *in limine*. *Certain Wireless Consumer Elecs. Devices & Components Thereof*, Inv. No. 337-TA-853, Order No. 59, 2013 WL 2453912, at *4 (May 29, 2013) (denying motion *in limine* for “improperly seeking summary determination” on “sufficiency of Complainants’ evidence”) (citing *Certain Coaxial Cable Connectors and Components Thereof and Products Containing Same*, Inv. No. 337-TA-650, Order No. 26 at 3 (June 30, 2009) (EDIS ID 407263); *Certain Portable Electronic Devices and Related Software*, Inv. No. 337-TA-797, Order No. 61 at 3 (July 26, 2012) (EDIS ID 488690)).

Commission precedent is replete with examples of motions *in limine* being denied on this ground. *See, e.g., Certain Glass Substrates for Liquid Crystal Displays, Prods. Containing the Same, & Methods for Mfg. the Same*, Inv. No. 337-TA-1433, Order No. 70 at 4 (Jan. 26, 2026) (EDIS ID 871831) (“Respondents effectively seek summary determination on the merits of Respondents’ unclean hands defense ..., and [] this determination is inappropriate for a motion *in limine*”); *Certain Power Inverters & Converters, Vehicles Containing the Same, & Components Thereof*, Inv. No. 337-TA-1267, Order No. 45 at 2-3 (Mar. 31, 2022) (EDIS ID

[REDACTED]

768222) (“[T]he identified evidence should not be excluded from the hearing. Respondents’ motion is based on disputed factual issues that cannot be resolved *in limine*.”) (citing *Certain Mobile Devices with Multifunction Emulators*, Inv. No. 337-TA-1170, Order No. 23 at 2 (July 29, 2020) (EDIS Doc. ID 716480) (denying a motion in limine based on “disputed factual assertion”)); *Certain Portable Elec. Devices & Related Software*, Inv. No. 337-TA-797, Order No. 61 at 3 (July 26, 2012) (EDIS Doc. ID 488690) (denying motion *in limine* directed to the sufficiency of infringement evidence, finding that “allegations regarding the sufficiency of [party’s] evidence are more appropriately directed to the weight that such evidence should be afforded and not to its admissibility”)). Yet this is precisely what Oura’s MIL 3 tries to do. *See, e.g.*, MIL at 5 (arguing that “[i]nvestments related to the Asserted Patents count toward the economic prong of the domestic industry only if made by entities authorized to do work associated with those patents.”); *id.* at 6 (“Samsung has not carried its burden to show that SEA is authorized to practice the Asserted Patents.”); *id.* at 10 (“Samsung should be precluded from presenting arguments, submitting evidence, or eliciting any testimony concerning SEA’s alleged authority to practice the Asserted Patents.”). Oura’s MIL should be denied.

B. SEA Is a Complainant and Has Standing Before the Commission

SEA is a named complainant in this Investigation. *See* Exhibit S (Complaint) at cover, 2-3. SEC, the other complainant, “owns all rights, titles, and interest in each of the patents.” *Id.*, ¶4. Oura does not dispute these facts. *See* MIL at 1, 2-3, 5.

There can also be no dispute that SEA has standing before the Commission. Commission Rule 210.12(a)(7) requires that “every intellectual property based complaint (regardless of the type of intellectual property right involved), [must] include a showing that ***at least one complainant is the owner or exclusive licensee of the subject intellectual property.***” 19 CFR 210.12(a)(7) (emphasis added). ITC precedent is clear that ***only one*** named complainant must own or be the

exclusive licensee of the asserted patents. *See, e.g., Certain Products Containing Interactive Program Guide and Parental Control Technology*, Inv. No. 337-TA-845, Final Initial Determination at 276 (June 7, 2013) (EDIS 512554); *Certain Diltiazem Hydrochloride and Diltiazem Preparations*, Inv. No. 337-TA-349, Order No. 35, 1994 WL 930265, at *2 (Sept. 2, 1994) (“The Commission has not precluded those who have no legally cognizable rights in the patent from appearing as a coparty complainant.”). That complainant is SEC.

Contrary to Oura’s suggestion, this is the only “standing” requirement to bring a Section 337 complaint before the Commission. In a case cited by Oura, MIL at 9, the Commission expressly rejected the proposition that a constitutional standing requirement applies in Section 337 investigations:

Thus, the determination of who may bring a section 337 investigation begins with the language of the Commission’s governing statute and regulations promulgated pursuant to that authority. 19 U.S.C. § 1337; 19 C.F.R. § 210.12. ***Insofar as the Commission has previously applied a constitutional standing requirement in the past or suggested that it applies to section 337 investigation, that precedent is hereby overruled.***

Certain Active Matrix Organic Light Emitting Diode Display Panels and Modules for Mobile Devices, and Components Thereof (“*Certain AMOLED Display Panels*”), Inv. No. 337-TA-1351, Commission Opinion on Motion for Summary Determination at 13 (May 15, 2024) (EDIS ID 821542) (emphasis added).² Oura’s arguments to the contrary are simply wrong. For instance, the

² Federal Circuit decisions suggesting a constitutional standing requirement before the Commission are non-binding. *See, e.g., Certain Products Containing Interactive Program Guide and Parental Control Technology*, Inv. No. 337-TA-845, Final Initial Determination at 276 (June 7, 2013) (EDIS ID 512554) (dismissing three Federal Circuit decisions considering Article III standing as non-binding because they were not “relevant to the Commission’s standing requirements”). Oura cites two appellate decisions that likewise do not consider Commission rules or standing requirements. *See* MIL at 8 (citing *Poly-Am., L.P. v. GSE Lining Tech., Inc.*, 383 F.3d 1303, 1311 (Fed. Cir. 2004) (relating to a licensee’s ability to sue for damages in district court); *United States v. Bennett*, 621 F.3d 1131, 1136-38 (9th Cir. 2010) (regarding the legal distinctions between a corporation and its shareholders). These cases are apropos of nothing.

Commission Opinion in the 1351 Investigation does not stand for the proposition that “SEC’s implied license to a subsidiary’s patent may have jeopardized a standing claim,” MIL at 9, as Oura suggests. Rather, the Commission *vacated* summary determination granted against the complainant (there, SDC, not SEC or SEA—and not a wholly-owned subsidiary of SEC), finding the ALJ improperly drew inferences against SDC and incorrectly concluded there was no issue of material fact regarding related licensing practices. *Certain AMOLED Display Panels*, Inv. No. 337-TA-1351, Commission Opinion on Motion for Summary Determination at 18; *see also id.* at 4 (further noting the undisputed material fact that “SDC is a separate company that operates independently from SEC”—a fact not asserted here with respect to SEA). Oura’s attempt to blur the lines across various Samsung entities is improper.

C. SEA’s Investments Are Authorized for Purposes of Satisfying the Economic Prong of the Domestic Industry Requirement

In the Commission Opinion from Investigation No. 337-TA-845, which Samsung cited in its Prehearing Brief, the Commission explained:

Section 337(a) requires that a domestic industry be established, *but it does not specify which corporate entity must demonstrate investments in that domestic industry*. Under Commission precedent, a complainant may rely upon investments by related corporate entities (or even unrelated licensees) to prove the existence of a domestic industry requirement.

Certain Products Containing Interactive Program Guide and Parental Control Technology, Inv. No. 337-TA-845, Final Initial Determination at 276 (June 7, 2013) (EDIS ID 512554); *see* Exhibit Z (Complainants’ Pre-Hearing Brief) at 289 n.14.

The Commission Opinion in the 845 Investigation cites to *Certain Liquid Crystal Display Devices and Products Containing the Same*, Inv. No. 337-TA-631, Order No. 18 (Sept. 23, 2008) (EDIS ID 312251), which granted summary determination on economic domestic industry. *Id.* at 7. In that investigation, SEC, as the sole complainant, relied on investments of SEA and SEA’s

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then-wholly-owned subsidiary, STA, to establish significant investments in the United States under section 1337(a)(3)(B). *Id.* at 5-9; *see also Certain Liquid Crystal Display Devices and Products Containing the Same*, Inv. No. 337-TA-631, Complaint (EDIS ID at 288718) at 2-3 (identifying SEC as the only complainant). SEC neither included SEA as a complainant—in contrast to this investigation—nor described SEA or STA as licensees to the asserted patents. *Certain Liquid Crystal Display Devices and Products Containing the Same*, Inv. No. 337-TA-631, Complaint, ¶¶8.1 (EDIS ID 288718) (identifying licensees in confidential exhibit), 9.2-9.9 (describing subsidiaries SEA and STA and their investments and activities). At no point was there a discussion or expectation that SEC demonstrate that *non-parties* SEA or STA were “authorized to practice the asserted patents” for their investments to count toward the domestic industry. *See generally Certain Liquid Crystal Display Devices and Products Containing the Same*, Inv. No. 337-TA-631, Order No. 18 (Sept. 23, 2008) (EDIS ID 312251).

Oura makes the broad argument that “[i]nvestments related to the Asserted Patents count toward the economic prong of the domestic industry only if made by entities authorized to do work associated with those patents.” MIL at 5. The single case upon which Oura relies does not support this sweeping statement. *See Certain Optical Disc Drives, Components Thereof, & Prods. Containing Same*, Inv. No. 337-TA-897, Comm’n Order at 4-5 (Sep. 29, 2014) (EDIS ID 541391). Instead, that Order related to a licensing entity complainant attempting to establish domestic industry-by-subpoena through the activities of licensees unrelated in any corporate sense to the complainant. *Id.* at 2-3. The Commission Order actually vacated the underlying Initial Determination, which found the complainant had failed to satisfy the economic prong because its licensees’ activities “did not concern production-driven exploitation of the patent.” *Id.* The Order

did not address “authorization to practice” by a complainant or a wholly-owned subsidiary of a complainant, but rather “the nature of [the complainant’s] licensing activities.” *Id.* at 4-5.

By contrast, SEA’s investments, or those of other similarly-situated SEC subsidiaries, have been deemed to satisfy the economic domestic industry in several ITC investigations. *See, e.g., Certain Liquid Crystal Display Devices and Products Containing the Same*, Inv. No. 337-TA-631, Order No. 18 (Sept. 23, 2008) (EDIS ID 312251) (discussed above); *Certain Graphics Processing Chips, Systems on a Chip, and Products Containing the Sams*, Inv. No. 337-TA-941, Order No. 12 (Initial Determination on Motion for Summary Determination) at 8 (July 16, 2015) (EDIS ID 561883) (granting summary determination on economic domestic industry based on domestic investments made by “indirect wholly-owned subsidiary” and complainant Samsung Austin Semiconductor, LLC), *not reviewed by Commission*, Commission Determination Not to Review Initial Determination at 2 (Aug. 12, 2015) (EDIS ID 562933); *Certain Wireless Communications Equipment and Articles Therein*, Inv. No. 337-TA-866, Order No. 41 at 4 (Initial Determination on Motion for Summary Determination) (Sept. 26, 2013) (EDIS ID 519116) (granting summary determination on economic domestic industry based on domestic investments made by subsidiary and complainant Samsung Telecommunications America, LLC), *not reviewed by Commission*, Commission Determination Not to Review Initial Determination (Oct. 22, 2023) at 2 (EDIS ID 520018); *Certain Electronic Devices, Including Wireless Communication Devices, Portable Music and Data Processing Devices, and Tablet Computers*, Inv. No. 337-TA-794, Commission Opinion at 102-105 (July 15, 2013) (EDIS ID 512742-2) (finding significant economic domestic industry investments from subsidiary and complainant Samsung Telecommunications America, LLC).

Oura’s baseless argument would upend Commission determinations finding that a wholly-owned subsidiary’s investments count toward a domestic industry despite the lack of an express

[REDACTED]

license. In the Initial Determination in Investigation No. 337-TA-1241, cited by Oura (MIL at 6), ALJ Bhattacharyya explained that “*Commission precedent does not require a complainant to produce an explicit license agreement for its own subsidiary.*” *Certain Electrical Connectors & Cages, Components Thereof, & Products Containing the Same*, Inv. No. 337-TA-1241, Initial Determination at 356 (Mar. 11, 2022) (EDIS ID 767918) (emphasis added).

In a separate investigation, ALJ Lord granted summary determination on the economic prong of the domestic industry requirement where no license or other authorization existed between the parent complainant and domestic subsidiary. *Certain Wearable Monitoring Devices, Systems & Components Thereof*, Inv. No. 337-TA-1190, Order No. 34 at 27-28 (EDIS ID 723447) (Oct. 1, 2020), *not reviewed in relevant part by Commission* Determination at 3 (EDIS ID 739554) (Apr. 12, 2021)). The facts are almost the same as those here:

The parties do not dispute that Philips KPNV is the sole owner of the asserted patents and that *Philips NA is a wholly owned subsidiary of Philips KPNV*. The parties also do not dispute that Philips KPNV does not conduct operations in the U.S. and that *Philips NA is the entity whose operations exploit the patent in this country*.

Id. at 27 (emphasis added). ALJ Lord went on to find that, under Commission precedent, a subsidiary’s investments are attributable to the domestic industry where it is “implicitly authorized by its parent ... to practice the [asserted] patent; no license or explicit authorization is necessary.” *Id.* at 28; *see also Certain Magnetic Tape Cartridges and Components Thereof*, Inv. No. 337-TA-1058, Commission Opinion at 39 (Apr. 9, 2019) (EDIS ID 672595) (“[T]he Patent Act does not require that the authority to practice the patented invention must be granted in writing.”).

For these various reasons, there can be no actual legal or factual dispute over whether SEA’s investments should count towards the domestic industry in this case. Nothing stated by

Samsung in the pleadings, during fact discovery, or in its Prehearing Brief is inconsistent with that position, and Oura has identified nothing to the contrary.³

D. Samsung’s Prehearing Brief Introduces No Previously Undisclosed Evidence or Arguments

Oura asserts in its MIL that “[a] party cannot rely on contentions in its pre-hearing brief that have not been timely disclosed during discovery.” MIL at 7. There is nothing in Samsung’s prehearing brief that was not timely and fully disclosed during discovery, including the single footnote that Oura complains about—citing a single case to demonstrate legal support for Samsung’s position. That footnote, reproduced below, relates to the sentence in the text “SEA is the Samsung entity that sells Samsung products in the United States”:

14. Contrary to Oura’s assertion, SEA is authorized to practice the patents in the U.S. *See, e.g., Certain Products Containing Interactive Program Guide and Parental Control Technology*, Inv. No. 337-TA-845, Final Initial Determination at 276 (June 7, 2013).

See Exhibit Z (Complainants’ Prehearing Brief) at 289 & n.14.

As demonstrated in Section I above, this is not the first time Samsung has explained to Oura that SEA is authorized by SEC regarding the Asserted Patents. Starting with the Complaint, Samsung has consistently identified SEA as the entity that sells Samsung products in the U.S. *See* Exhibit S (Complaint), ¶¶4, 8. SEA’s corporate representative Christopher Martinez provided a declaration in support of Samsung’s Complaint that provided further details regarding the relationship between SEA and SEC, as well as the activities that SEA performed in the United

³ Oura mischaracterizes a prior case management conference to suggest that the ALJ previously admonished Samsung on the issue Oura raises now. MIL at 7 (citing CMC Tr. (May 4, 2026) at 20:12-15). That is simply untrue. The portion of the hearing transcript cited by Oura was part of a discussion regarding the scope of worldwide financial data Samsung should provide in support of its economic domestic industry. *See, e.g.,* CMC Tr. (May 4, 2026) at 13:13-23:19 (“Judge Johnson Hines: All right. So one other issue I understand is the data and the information that’s been provided is -- has been provided relative to operations in the U.S. but not globally.”). Indeed, the issue of SEA’s “authorization” or standing was never raised during that conference or any other.

[REDACTED]

States relating to the Asserted Patents and Domestic Industry Products. Exhibit T (Declaration of Christopher Martinez), ¶2. Mr. Martinez further testified, extensively, on the same information. And Samsung’s corporate representative on licensing issues testified that SEA “can practice asserted patents in the United States,” on the basis that SEA is a wholly-owned subsidiary. Exhibit M (Minsoo Kim Dep. Tr.) at 68-70.

Samsung and Oura previously stipulated in the 1468 Investigation that SEA, among other things, [REDACTED]

[REDACTED] Exhibit Y (Joint Stipulation) at 3. And Samsung produced CBP 7501 forms in the 1468 Investigation representing to CBP that SEA was the [REDACTED] for various Samsung mobile and wearable products in the United States. *Id.* at 45 (SAMS406-0073845).

Instead of acknowledging what Samsung *did* disclose during discovery, Oura feigns ignorance, repeatedly arguing that “Samsung lacked ‘standing’” because “Samsung has failed to provide complete responses to Oura’s requests seeking licensing and assignment information”; “Samsung has produced no written records of SEA’s rights to use the Asserted Patents”; “[w]hen specifically asked through interrogatories and meet and confers to describe all rights to the Asserted Patents, Samsung did not admit that SEA has any such rights”; and “Samsung was unable to identify any contract, policy, or agreement, written or verbal, that granted authority over the patents from SEC to SEA.” MIL at 3-5. But as the caselaw above makes clear, a written agreement is not required for a wholly-owned subsidiary’s investments to count toward the domestic industry. *See* Sections II.A-C, *supra*.

E. Oura Is Not Prejudiced by Samsung’s Prehearing Brief

Oura claims that Samsung’s “untimely” statement in its Prehearing Brief has prejudiced Oura because it “stymied Oura’s challenge to Samsung’s standing” such that it “cannot fairly

prepare for the hearing.” MIL at 9. Although Oura suggests it would have “investigate[d] any rights to the Asserted Patents, even if not memorialized in a written agreement,” Oura does not identify a single factual or legal discovery request it would have pursued but was actually “foreclosed” from doing so by Samsung’s statements. To be clear, Samsung’s representations during discovery, *e.g.*, that there were no other licenses or rights in the Asserted Patents beyond those identified as part of Samsung’s Complaint were—and are—entirely accurate. There is no written agreement between SEA and SEC relating to the Asserted Patents. But as noted above, there need not be any such agreement to confer standing on SEA or for SEA’s investments to qualify towards the domestic industry. *See, e.g., Certain Wearable Monitoring Devices, Systems & Components Thereof*, Inv. No. 337-TA-1190, Order No. 34 at 28 (EDIS ID 723447) (Oct. 1, 2020).

III. CONCLUSION

For the forgoing reasons, Samsung respectfully submits that Oura’s MIL No. 3 should be denied.

Dated: September 2, 2026

Respectfully submitted,

/s/ D. Sean Trainor

D. Sean Trainor
Renia Zervos
Khanh Leon
Jacob Boesch
O'MELVENY & MYERS LLP
1625 Eye Street, NW
Washington, DC 20006
Telephone: (202) 383-5300

Ryan K. Yagura
Ben Haber
Nancy Schroeder
Gregory Sefian
Grace McFee
Ohona Chowdhury
O'MELVENY & MYERS LLP
400 South Hope Street, 19th Floor
Los Angeles, CA 90071
Telephone: (213) 430-6000

Mark Liang
Bill Trac
Rui Li
Sorin Zaharia
Eric T. Ong
O'MELVENY & MYERS LLP
Two Embarcadero Center, 28th Floor
San Francisco, CA 94111
Telephone: (415) 984-8700

Marc Pensabene
Laura Gore
Caitlin P. Hogan
Nate Legum
Joanne Bae
O'MELVENY & MYERS LLP
1301 Avenue of the Americas, 17th Floor
New York, NY 10019
Telephone: (212) 326-2000

John Kappos
Cason Cole
Frances Mackay



O'MELVENY & MYERS LLP
2801 North Harwood Street, Suite 1600
Dallas, TX 75201
Telephone: (972) 360-1900

Email: OMM-Samsung-Oura@omm.com

*Counsel for Complainants Samsung
Electronics Co., Ltd. and Samsung Electronics
America, Inc.*

CERTIFICATE OF SERVICE

Investigation No. 337-TA-1478

The undersigned certifies that on September 2, 2026, true and correct copies of the foregoing document were served upon the following parties as indicated below:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, SW, Room 112 Washington, DC 20436	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☒ Via Electronic Filing (EDIS) ☐ Via Electronic Mail
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, D.C. 20436 Email: JohnsonHines1478@usitc.gov	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☒ Via Electronic Filing (EDIS) ☒ Via Electronic Mail
<i>Counsel for Respondents Ouraring Inc. and Oura Health Oy</i> Jasjit S. Vidwan James A. Fussell, III Saqib J. Siddiqui Bryan C. Nese MAYER BROWN LLP 199 K. Street NW Washington, DC 20006 Tel: 202-263-5282 Robert G. Pluta Nicholas H. Ciulla MAYER BROWN LLP 71 S. Wacker Drive Chicago, IL 60606 Tel: 312-782-0600 Email: Our-ITC@mayerbrown.com	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☐ Via Electronic Filing (EDIS) ☒ Via Electronic Mail

/s/ Brian A. Treggs

Brian A. Treggs
Senior IPT Specialist
O'Melveny & Myers LLP
400 South Hope Street
Los Angeles, CA 90071

EXHIBIT S

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

In the Matter of

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-_____

COMPLAINT UNDER SECTION 337 OF THE TARIFF ACT OF 1930

COMPLAINANTS:

Samsung Electronics Co., Ltd.
129 Samsung ro (Maetan-dong)
Yeongtong-gu Suwon-si
Gyeonggi-do 16677 Korea
Telephone: 82 2 2255 0114

Samsung Electronics America, Inc.
700 Sylvan Avenue
Englewood Cliffs, New Jersey 07632
Telephone: (201) 229-4000

PROPOSED RESPONDENTS:

Ouraring, Inc.
222 Kearny Street
San Francisco, California 94108
Telephone: (415) 704-9110

Ōura Health Oy
Elektroniikkatie 10,
90590 Oulu, Finland
Telephone: (415) 704-9110

COUNSEL FOR COMPLAINANTS:

D. Sean Trainor
O'MELVENY & MYERS LLP
1625 Eye Street, NW
Washington, D.C. 20006-4061
Telephone: (202) 383-5300
dstrainor@omm.com

Ryan K. Yagura
Nicholas Whilt
Nancy L. Schroeder
O'MELVENY & MYERS LLP
400 South Hope Street
18th Floor
Los Angeles, California 90071-2899
Telephone: (213) 430-6000

Marc J. Pensabene
Laura B. Gore

O'MELVENY & MYERS LLP
1301 Avenue of the Americas
Suite 1700
New York, New York 10019-6022
Telephone: (212) 326-2000

Darin Snyder
Mark Liang
Bill Trac
O'MELVENY & MYERS LLP
Two Embarcadero Center
28th Floor
San Francisco, California 94111-3823
Telephone: (415) 984-8700

Frances Mackay
O'MELVENY & MYERS LLP
2801 North Harwood Street
Suite 1600
Dallas, Texas 75201-2692
Telephone: (972) 360-1900

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EXHIBITS

Exhibit	Description
1	Certified Copy of U.S. Patent No. 10,642,359
2	Certified Copy of U.S. Patent No. 10,945,677
3	Certified Copy of U.S. Patent No. 10,231,675
4	Uncertified Copy of U.S. Patent No. 10,978,789
5	Certified Copy of Assignment of U.S. Patent No. 10,642,359
6	Certified Copy of Assignment of U.S. Patent No. 10,945,677
7	Certified Copy of Assignment of U.S. Patent No. 10,231,675
8	Uncertified Copy of Assignment of U.S. Patent No. 10,978,789
9	List of Foreign Counterparts to the Asserted Patents
10C	CONFIDENTIAL List of Licensees to the Asserted Patents
11C	CONFIDENTIAL Declaration of Christopher Martinez
12	Samsung 2024 Annual Report
13	Infringement Claim Charts for U.S. Patent No. 10,642,359
14	Infringement Claim Charts for U.S. Patent No. 10,945,677
15	Infringement Claim Charts for U.S. Patent No. 10,231,675
16	Infringement Claim Charts for U.S. Patent No. 10,978,789
17	Documents Cited in Infringement Claim Charts for U.S. Patent No. 10,642,359
18	Documents Cited in Infringement Claim Charts for U.S. Patent No. 10,945,677
19	Documents Cited in Infringement Claim Charts for U.S. Patent No. 10,231,675
20	Documents Cited in Infringement Claim Charts for U.S. Patent No. 10,978,789
21	Oura Website – Product Safety & Use (https://support.ouraring.com/hc/en-us/articles/360025428394-Product-Safety-Use)
22	Oura Website - Shipping FAQs (https://support.ouraring.com/hc/en-us/articles/360025439494-Shipping-FAQs#h_01FP8V7W773BSED7ASRMS7294S)
23	Invoice of Accused Product Purchase
24	Photograph of Accused Product Made in Mexico and shipped to the United States
25C	CONFIDENTIAL Technical Domestic Industry Claim Charts for U.S. Patent No. 10,642,359
26C	CONFIDENTIAL Technical Domestic Industry Claim Charts for U.S. Patent No. 10,945,677
27C	CONFIDENTIAL Technical Domestic Industry Claim Charts for U.S. Patent No. 10,231,675
28C	CONFIDENTIAL Technical Domestic Industry Claim Charts for U.S. Patent No. 10,978,789
29	Documents Cited in Technical Domestic Industry Claim Charts for U.S. Patent No. 10,642,359
30	Documents Cited in Technical Domestic Industry Claim Charts for U.S. Patent No. 10,945,677

31	Documents Cited in Technical Domestic Industry Claim Charts for U.S. Patent No. 10,231,675
32	Documents Cited in Technical Domestic Industry Claim Charts for U.S. Patent No. 10,978,789
33	Physical Sample of Domestic Industry Product
34	Physical Sample of Accused Product

APPENDICES

Appendix	Description
A	Certified copy of prosecution history of U.S. Patent No. 10,642,359
B	Certified copy of prosecution history of U.S. Patent No. 10,945,677
C	Certified copy of prosecution history of U.S. Patent No. 10,231,675
D	Uncertified copy of prosecution history of U.S. Patent No. 10,978,789

I. INTRODUCTION

1. The Complaint is filed by Samsung Electronics Co., Ltd. (“SEC”) and Samsung Electronics America, Inc. (“SEA”) (collectively, “Samsung” or “Complainants”) under Section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337 (“Section 337”), based on the unlawful importation into the United States, the sale for importation into the United States, and the sale within the United States after importation, by the proposed Respondents of certain wearable devices that infringe the following claims of U.S. Patent Nos. 10,642,359, 10,945,677, 10,231,675 and 10,978,789 (collectively, the “Asserted Patents”) either literally or under the doctrine of equivalents (independent claims in bold):

Patent Number	Asserted Claims
10,642,359	1-2, 4, 7-8, 10, 14-15, 20
10,945,677	1-7, 9-14, 16-20
10,231,675	13-19, 20
10,978,789	7, 8-10

2. SEC is one of the largest providers by volume of wearables and smartphones in the world, and SEA is the second largest provider by volume of wearables and smartphones in the United States. Confidential Exhibit 11 (Martinez Decl.) at ¶ 2.

3. The proposed Respondents Ouraring, Inc. and Ėura Health Oy (collectively, “Oura” or “Respondents”) manufacture, import, sell for importation, sell after importation, service, and repair, among other things, certain wearable devices, such as smart rings (the “Accused Products”). The Accused Products incorporate, without license, many technologies developed by Samsung and protected by patents issued to and owned by SEC.

4. Copies of the Asserted Patents are included as Exhibits 1-4. A list of foreign counterparts to the Asserted Patents is included as Exhibit 9. SEC owns all rights, titles, and

interest in each of the Asserted Patents. Copies of the assignment records for each of the Asserted Patents are included at Exhibits 5-8.

5. Pursuant to Commission Rule 210.12(a)(9)(iii), Confidential Exhibit 10 identifies all licensees to the Asserted Patents. Samsung is not relying upon any licensee to establish standing or to satisfy the domestic industry requirement.

6. A domestic industry as required by 19 U.S.C. §§ 1337(a)(2) and (3) exists in the United States relating to the technology protected by the Asserted Patents, including substantial investment and expenditures of SEA and its partners, and substantial investment in the exploitation of the inventions claimed in the Asserted Patents, including through engineering, research and development, and service and repair.

7. Samsung seeks as relief a permanent limited exclusion order under 19 U.S.C. § 1337(d) barring from entry into the United States directly infringing or indirectly infringing wearable devices manufactured or sold by or on behalf of Respondents. Samsung further seeks as relief a permanent cease and desist order under 19 U.S.C. § 1337(f) prohibiting Respondents from marketing, distributing, selling, offering for sale, warehousing inventory for distribution, or otherwise transferring or bringing into the United States infringing wearable devices.

II. COMPLAINANTS

8. Complainant Samsung Electronics Co., Ltd. is a corporation organized and existing under the laws of the country of Korea, having its principal place of business at 129 Samsung ro, Maetan-dong, Yeongtong-gu Suwon-si, Gyeonggi-do 16677 Korea. SEC is the assignee of the Samsung patents with the right to sue for all past, present, and future infringement thereof.

9. Complainant Samsung Electronics America, Inc. is a corporation organized and existing under the laws of the state of New York, having its principal place of business at 700 Sylvan Avenue, Englewood Cliffs, New Jersey 07632. SEA is a wholly-owned subsidiary of SEC.

10. Samsung is one of the world's leading electronics companies, specializing in wireless communications, digital appliances and media, semiconductors, memory, and system integration. Founded in 1969, SEC has grown to become a world leader in the design, manufacture, and marketing of a wide variety of electronic products. SEC is one of the largest manufacturers of wearable devices in the world and has long focused on the United States as a critical market for its products. SEC established SEA to engage in activities in the United States related to certain of Samsung's product lines.

11. SEA supplies mobile products and services, wearables, and consumer electronics products and services in the United States market. In doing so, SEA is involved in numerous development and commercialization activities, including engineering, research, development, testing, customer service, importation, sales, marketing, and distribution of products in the United States, including wearables and smartphones.

12. SEC is one of the largest providers by volume of wearables and smartphones in the world, and SEA is the second largest provider by volume of wearables and smartphones in the United States. Additional information concerning Samsung can be obtained from its 2024 Annual Report at Exhibit 12.

III. PROPOSED RESPONDENTS

13. On information and belief, Respondent Ouraring, Inc. is a Delaware corporation with its principal place of business at 222 Kearny Street, San Francisco, California 94108.

14. On information and belief, Respondent Ōura Health Oy is a Finnish company with its principal place of business at Elektroniikkatie 10, 90590, Oulu, Finland.

15. On information and belief, Ouraring, Inc. is a wholly-owned subsidiary of Ōura Health Oy, which was founded in Finland in 2013. Ōura Health Oy was formerly known as JouZen Oy. JouZen Oy was subsequently changed to Ōura Health Oy in 2017.

IV. THE TECHNOLOGY AND PRODUCTS AT ISSUE

16. Pursuant to Commission Rule 210.12(a)(12) and 210.10(b)(1), the technology at issue relates to smart rings having biosensing capabilities.

17. The Accused Products are wearable devices, specifically wearable biosignal interfaces and an operation method thereof as well as wearable electronic devices for detecting biometric information. The Accused Products include, but are not limited to, Respondents' Oura Ring products. The Accused Products are sold for importation into, imported into, sold after importation into, and used within the United States by or on behalf of Respondents.

V. THE ASSERTED PATENTS AND A NONTECHNICAL DESCRIPTION OF THE INVENTIONS

18. SEC owns by assignment the full right, title and interest in U.S. Patent Nos. 10,642,359, 10,945,677, 10,231,675, and 10,978,789. *See* Exhibits 5-8. Pursuant to Commission Rule 210.12(c), copies of the prosecution histories of each of the Asserted Patents have been submitted with this complaint as Appendices A–D. Samsung has not declared the Asserted Patents as potentially essential to any standard maintained by a standard setting organization.

A. The '359 Patent¹

19. United States Patent No. 10,642,359, entitled "Wearable Biosignal Interface and Method Thereof," issued on May 5, 2020, to inventors Chang Mok Choi, Sang Joon Kim, and Seung Keun Yoon. The '359 patent issued from 16/267,752, filed on February 5, 2019, which was a continuation application of U.S. Patent App. Ser. No. 14/913,085, filed on February 19, 2016, which is a U.S. National Stage Application of International Application No. PCT/KR2014/004073,

¹ These descriptions and any other non-technical descriptions within this Complaint are for illustrative purposes only. Nothing contained within this Complaint is intended to, either implicitly or explicitly, express any position regarding the proper construction of any claim of the Asserted Patents.

filed on May 8, 2014. *See* '359 patent at 1:7-11. The '359 patent claims priority to Korean Patent App. No. 10-2013-0098476, filed on August 20, 2013. *See id.* at 1:11-13. The '359 patent expires on May 8, 2034.

20. The '359 patent contains 34 claims, including 4 independent claims and 30 dependent claims. Complainants assert that Respondents' wearable devices infringe claims 1-2, 4, 7-8, 10, 14-15, and 20 of the '359 patent.

21. The '359 patent generally concerns a wearable biosignal interface and an operation method thereof that allows for improved recognition of user intention. The '359 patent describes a wearable biosignal interface that includes a "a motion sensor configured to obtain a first signal based on a motion of a target, a biosignal sensor disposed on the target and configured to obtain a second signal from the target, and a determination controller configured to determine a validity of the second signal based on the first signal." '359 patent at 1:49–55. The second signal "may include biological information obtained by one or more biosensor in contact with skin of the target." *Id.* at 1:56–58.

B. The '677 Patent

22. United States Patent No. 10,945,677, entitled "Method for Detecting Biometric Information and Electronic Device Using Same," issued on March 16, 2021, to inventors Gihung Chung, Jooman Han, So Hyun Chung, Dae-Yong Lee, Hongsig Kim, Hyunwoo Jang, Cheolho Cheong, Jae-Woong Chun, and Won Suk Choi. The '677 patent issued from U.S. Patent App. Ser. No. 16/256,497, filed on January 24, 2019, which was a continuation application of U.S. Patent App. Ser. No. 15/173,099, filed on June 3, 2016, which was issued as U.S. Pat. No. 10,231,675 on March 19, 2019. *See* '677 patent at 1:8-10. The '677 patent claims priority to Korean Patent App. No. 10-2015-0113972, filed on August 12, 2015. *See id.* at 1:11-13. The '677 patent expires on August 23, 2036.

23. The '677 patent contains 20 claims, including 3 independent claims and 17 dependent claims. Complainants assert that Respondents' wearable devices infringe claims 1-7, 9-14, and 16-20 of the '677 patent.

24. The '677 patent generally concerns a wearable electronic device for detecting biometric information. The '677 patent describes "an electronic device and a method that can selectively operate a biometric sensor based on a selected (or specified) condition[,],... continually... operate a biometric sensor according to a selected (or specified) period[, and],... measure biometric information based on the motion of the electronic device." '677 patent at 1:62–2:5.

C. The '675 Patent

25. U.S. Patent No. 10,231,675, entitled "Method for Detecting Biometric Information and Electronic Device Using Same," issued March 19, 2019, to inventors Gihung Chung, Jooman Han, So Hyun Chung, Dae-Yong Lee, Hongsig Kim, Hyunwoo Jang, Cheolho Cheong, Jae-Woong Chun, and Won Suk Choi. The '675 patent issued from U.S. Patent App. Ser. No. 15/173,099, filed on June 3, 2016. The '675 patent claims priority to Korean Patent App. No. 10-2015-0113972, filed on August 12, 2015. *See* '675 patent at 1:8-12. The '675 patent expires on January 6, 2037.

26. The '675 patent contains 20 claims, including 3 independent claims and 17 dependent claims. Complainants assert that Respondents' wearable devices infringe claims 13-20 of the '675 patent.

27. The '675 patent generally concerns a wearable electronic device for detecting biometric information. The '675 patent describes "an electronic device" and "method of measuring biometric information by an electronic device" comprising "determining whether the electronic device is worn on a part of a user's body using at least one first sensor, activating (operating or

triggering) at least one second sensor based on at least a part of the a motion of the electronic device,” “and measuring biometric information based on the at least one second sensor.” ’675 patent at 2:4–36 .

D. The ’789 Patent

28. United States Patent No. 10,978,789, entitled “Electronic Device Including High-Frequency Transmission Circuit,” issued on April 13, 2021, to inventors Han-Min Cho, Chan-Gi Park, Yeon-Sang Yun, Tae-Wook Ham, Hei-Seong Kwak, Byoung-Il Son, and Sung-Chul Park. The ’789 patent issued from U.S. Patent App. Ser. No. 16/939,708, filed on July 27, 2020, which was a continuation application of U.S. Patent App. Ser. No. 15/621,687, filed on June 13, 2017. *See* ’789 patent at 1:7–9. The ’789 patent claims priority to Korean Patent App. No. 10-2016-0073355, filed on June 13, 2016. *See id.* at 1:9–12. The ’789 patent expires on June 13, 2037.

29. The ’789 patent contains 20 claims, including 3 independent claims and 17 dependent claims. Complainants assert that Respondents’ wearable devices infringe claims 7 and 8-10 of the ’789 patent.

30. The ’789 patent generally concerns an electronic device containing a high-frequency transmission circuit and “a transmission line capable of effectively transmitting a noiseless high-frequency signal in a narrow space without affecting other modules.” *Id.* at 1:19–23. The electronic device includes “a first [printed circuit board (‘PCB’)]; a second PCB connected to the first PCB through a connector and including at least one [flexible PCB (‘FPCB’)] and at least one rigid PCB that are integrated with each other.” *Id.* at 2:25–29.

VI. RESPONDENTS’ UNLAWFUL AND UNFAIR ACTS

31. Respondents have engaged in unlawful and unfair acts, including the sale for importation into the United States, importation into the United States, and/or sale within the United

States after importation of the Accused Products that directly infringe one or more of the following Asserted Claims of the Asserted Patents (independent claims in bold):

Patent Number	Asserted Claims
10,642,359	1-2, 4, 7-8, 10, 14-15, 20
10,945,677	1-7, 9-14, 16-20
10,231,675	13-20
10,978,789	7, 8-10

32. On information and belief, Respondents also intend and actively induce their customers, distributors, and/or end users of the Accused Products to directly infringe at least one of the Asserted Claims of the '359, '677, '675, and '789 patents at least by providing instructions explaining how to use the Accused Products after importation into the United States and encouraging their use in that manner, as well as doing so through their website at <https://support.ouraring.com/hc/en-us/articles/360025428394-Product-Safety-Use>. See Exhibit 21 (last accessed December 12, 2025). On information and belief, Respondents have been aware of the '359, '677, '675, and '789 patents or have acted with willful blindness to their existence at least as of the filing of this Complaint.

33. Respondents also contributorily infringe at least one of the Asserted Claims of the '359, '677, '675, and '789 patents. Specifically, Respondents contribute to the infringement by their customers, distributors, and/or end users as they have known since at least the filing of this Complaint that the Accused Products are especially made or especially adapted for use in infringing at least one of the Asserted Claims of the '359, '677, '675, and '789 patents. Additionally, the Accused Products are not staple articles or commodities of commerce suitable for substantial non-infringing use.

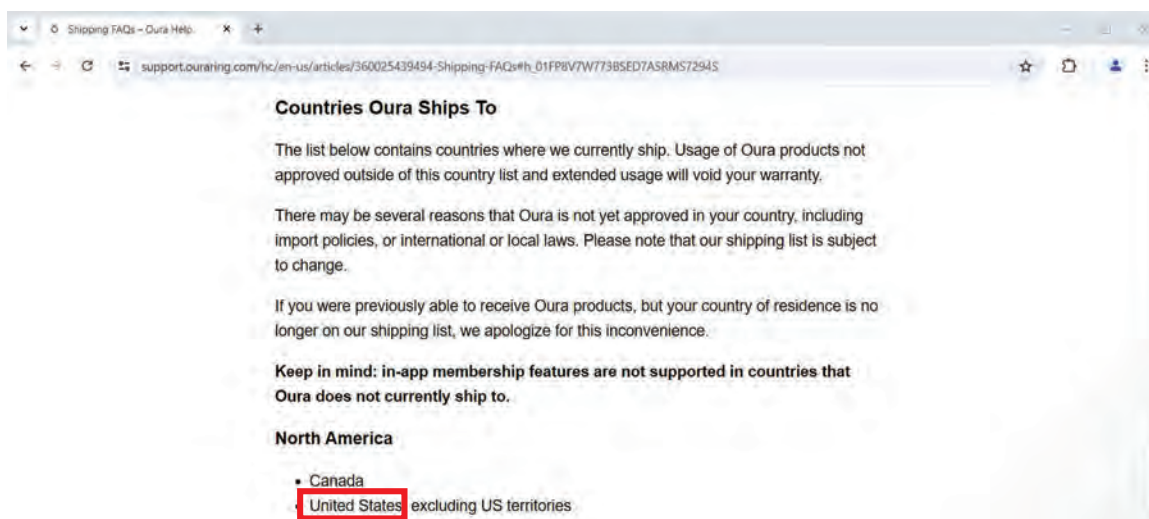
34. A physical sample of the Accused Product is marked as Exhibit 34 and is being made available in accordance with Commission procedures and rules.

35. Exemplary claim charts comparing the '359, '677, '675, and '789 patents' independent Asserted Claims to Respondents' Accused Product are attached as Exhibits 13-16. Copies of documents cited in the claim charts are attached as Exhibits 17-20.

VII. SPECIFIC INSTANCES OF UNFAIR IMPORTATION

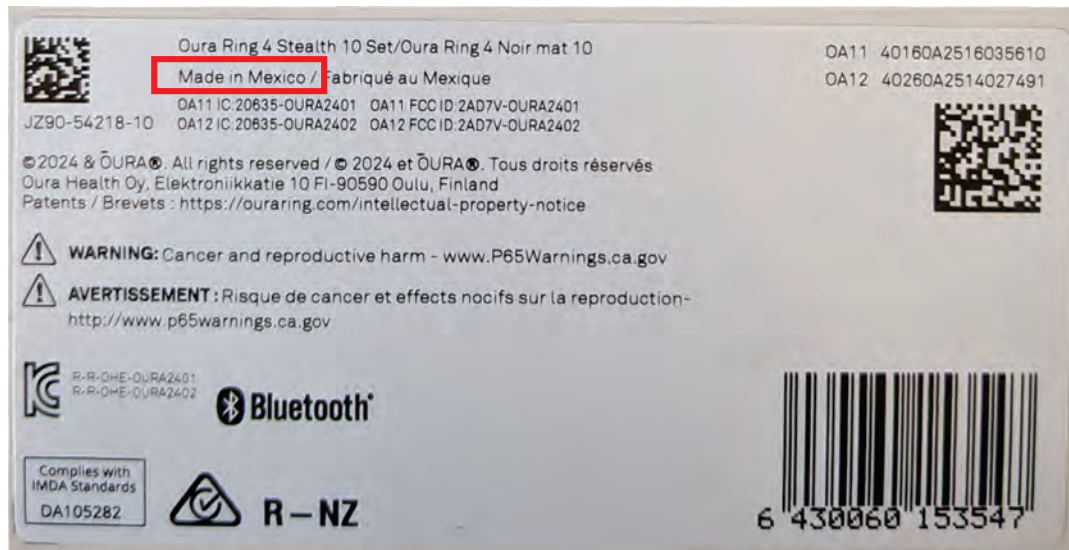
36. On information and belief, Respondents, either themselves or through subsidiaries or third parties acting on behalf of Respondents, are engaged in the manufacture, importation, sale for importation, offer for sale after importation, sale and/or use after importation into the United States of the Accused Products. The specific instances set forth below are representative examples of Respondents' unlawful manufacture, importation, sale for importation, offer for sale after importation, sale and/or use after importation into the United States of infringing products.

37. On information and belief, Respondents' Accused Products are manufactured in Mexico and then imported into the United States. Respondents sell and offer for sale the Accused Products directly to customers in the United States, including through its website (<https://ouraring.com>), which advertises that Oura will ship the Accused Products to the United States (Exhibit 22):



38. Before filing this Complaint, a representative Accused Product was purchased on November 2, 2025, in the United States. A copy of the invoice of this purchase is attached as Exhibit 23.

39. The Accused Product includes a label on the package indicating that the product was “Made in Mexico” (Exhibit 24):



VIII. CLASSIFICATION OF THE INFRINGING PRODUCTS UNDER THE HARMONIZED TARIFF SCHEDULE

40. On information and belief, the Accused Products fall within at least the following classification of the Harmonized Tariff Schedule (“HTS”) of the United States: 9031.80.8085. The identified HTS number is intended to be for illustration only and is not exhaustive of the products accused of infringement in this Complaint. The HTS number is not intended to limit the scope of the Investigation.

IX. RELATED LITIGATION

41. On May 30, 2024, Complainant SEC filed suit against Respondents in the United States District Court for the Northern District of California, Case No. 3:24-cv-03245, seeking

declaratory judgment of non-infringement as to the following patents owned by Oura: U.S. Patent Nos. 10,842,429; 11,868,178; 11,868,179; 10,893,833; and 11,599,147 .

42. On October 23, 2025, Respondent Ouraring Inc. filed suit against SEA in the United States District Court for the Eastern District of Texas, Case No. 2:25-cv-01064, asserting infringement on U.S. Patent Nos. 11,868,178; 12,353,244; 12,346,159; 12,393,227; 12,346,160; 12,422,889; 12,429,909; and 12,222,759.

43. On November 18, 2025, Respondent Ouraring Inc. requested the United States International Trade Commission to institute an investigation into violations of Section 337 against SEC and SEA; Reebok International Limited, RILUK IPCO Limited, The Original Fit Factory Ltd, Truconnect Ltd, and Reebok International Ltd., LLC (together, “Reebok”); Zepp Health Corporation, Anhui Huami Information Technology Co., Ltd., Zepp Inc. (d/b/a Zepp Health), and Zepp North America Inc. (together, “Zepp”); and Nexxbase Marketing Pvt. Ltd. (d/b/a Noise and LunaZone) (“Nexxbase”). Oura asserted infringement on U.S. Patent Nos. 11,868,178; 12,353,244; 12,346,159; 12,393,227; 12,346,160; 12,422,889; 12,429,909; and 12,222,759.

44. On December 1, 2025, Complainants filed suit against Respondent Ōura Health Oy in the United States District Court for the Eastern District of Texas, Case No. 2:25-cv-1181 asserting infringement on U.S. Patent Nos. 7,662,065; 9,008,973; 12,260,672; 12,279,849; 12,324,655; and 12,383,152.

X. THE DOMESTIC INDUSTRY

45. A domestic industry in the United States exists with respect to articles protected by the '359, '677, '675, and '789 patents based upon SEA's significant investments in plant and equipment and significant employment of labor and capital in the United States.

A. Articles that Practice the Asserted Patents (Technical Prong)

1. Certain Samsung wearable devices and mobile devices (“Domestic Industry Products”) practice at least one claim of the Asserted Patents. A physical sample of the Samsung Domestic Industry Product is marked as Exhibit 33 and is being made available in accordance with Commission procedures and rules.

2. Certain Samsung wearable devices, including, for example, the Samsung Galaxy Watch 4, Galaxy Watch 5, Galaxy Watch 6, and Galaxy Watch 7 (collectively, “Galaxy Smartwatches”) and Galaxy Ring, practice at least one claim of the ’359 patent. An exemplary claim chart comparing the Samsung Galaxy Smartwatches to a representative claim of the ’359 patent is attached as Confidential Exhibit 25. Complete copies of documents referenced in the claim chart are attached in Exhibit 29.

3. Certain Samsung wearable devices, including, for example, the Samsung Galaxy Smartwatches and Galaxy Ring, practice at least one claim of the ’677 patent. An exemplary claim chart comparing the Samsung Galaxy Smartwatches to a representative claim of the ’677 patent is attached as Confidential Exhibit 26. Complete copies of documents referenced in the claim chart are attached in Exhibit 30.

4. Certain Samsung wearable devices, including, for example, the Samsung Galaxy Smartwatches and Galaxy Ring, practice at least one claim of the ’675 patent. An exemplary claim chart comparing the Samsung Galaxy Smartwatches to a representative claim of the ’675 patent is attached as Confidential Exhibit 27. Complete copies of documents referenced in the claim chart are attached in Exhibit 31.

5. Certain Samsung mobile devices, including, for example, the Galaxy S25 smartphones, practice at least one claim of the ’789 patent. An exemplary claim chart comparing the Samsung Galaxy S25 smartphones to a representative claim of the ’789 patent is attached as

Confidential Exhibit 28. Complete copies of documents referenced in the claim chart are attached in Exhibit 32.

6. The Domestic Industry Products practice more claims than the claims charted in Confidential Exhibits 25-28 and Complainants may demonstrate satisfaction of the technical prong through other claims of the Asserted Patents.

B. United States Economic Activities Relating to the Domestic Industry Products (Economic Prong)

7. Samsung has an existing domestic industry in '359, '677, '675, and '789 patents. SEA has made significant domestic investments in plant, equipment, labor, and capital as well as substantial domestic investments in engineering and research and development to develop, commercialize, and support its wearable devices and mobile devices. As described in the confidential declaration of Christopher Martinez, SEA employs hundreds of direct employees and contractors, and invests hundreds of millions of dollars in product strategy, management, planning, research, development, engineering, testing, compliance, quality control, technical support, sales, marketing, distribution, warehousing, service, warranty, repair, and replacement for Samsung mobile products in the U.S., including the Galaxy Smartwatches and Galaxy smartphones. *See* Confidential Exhibit 11 (Martinez Decl.) at ¶ 13. Without SEA's significant and substantial investments, SEA would not be able to commercialize and sell the Galaxy Smartwatches and smartphones in the United States. *See id.* at ¶¶ 19, 22, 27, 30, 33, 40, 46.

XI. RELIEF REQUESTED

8. Complainants respectfully request that the Commission:

a. Institute an investigation pursuant to Section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337, with respect to Proposed Respondents' violations of that section arising from the importation into the United States, sale for importation, and/or the sale within the

United States after importation of certain wearable devices and components thereof made on behalf of Respondents, that infringe one or more claims of the Asserted Patents;

b. Schedule and conduct a hearing pursuant to Section 337(c) for the purposes of (i) receiving evidence and hearing argument concerning whether there has been a violation of Section 337, and (ii) following the hearing, determining that there has been a violation of Section 337;

c. Issue a permanent limited exclusion order directed to products manufactured by Respondents, their subsidiaries, related companies, and agents pursuant to 19 U.S.C. § 1337(d) excluding entry into the United States of certain wearable devices made by or on behalf of Respondents, that infringe one or more claims of the Asserted Patents;

d. Issue a permanent cease and desist order pursuant to 19 U.S.C. § 1337(f) prohibiting Respondents, their subsidiaries, related companies and agents from conducting any of the following activities in the United States: importing, selling, marketing, advertising, distributing, offering for sale, transferring (except for exportation), soliciting United States agents or distributors, or aiding and abetting other entities in the importation, sale for importation, sale after importation, transfer (except for exportation), or distribution of certain wearable devices made by or on behalf of Respondents, that infringe one or more claims of the Asserted Patents;

e. Impose a bond upon importation of certain wearable devices made by or on behalf of Respondents, that infringe one or more claims of the Asserted Patents during the 60-day review period pursuant to 19 U.S.C. § 1337(j); and

f. Issue other and further relief as the Commission deems just and proper under the law, based on the facts determined by the investigation and the authority of the Commission.

Dated: December 12, 2025

/s/ D Sean Trainor

D. Sean Trainor
O'MELVENY & MYERS LLP
1625 Eye Street, NW
Washington, D.C. 20006-4061
Telephone: (202) 383-5300
dstrainor@omm.com

Ryan K. Yagura
Nicholas J. Whilt
Nancy L. Schroeder
O'MELVENY & MYERS LLP
400 South Hope Street
18th Floor
Los Angeles, California 90071-2899
Telephone: (213) 430-6000

Marc J. Pensabene
Laura B. Gore
O'MELVENY & MYERS LLP
1301 Avenue of the Americas
Suite 1700
New York, New York 10019-6022
Telephone: (212) 326-2000

Darin Snyder
Mark Liang
Bill Trac
O'MELVENY & MYERS LLP
Two Embarcadero Center
28th Floor
San Francisco, California 94111-3823
Telephone: (415) 984-8700

Frances Mackay
O'MELVENY & MYERS LLP
2801 North Harwood Street
Suite 1600
Dallas, Texas 75201-2692
Telephone: (972) 360-1900

*Counsel for Complainants Samsung
Electronics Co., Ltd. and Samsung Electronics
America, Inc.*

VERIFICATION OF COMPLAINT

I, Seung Woo (Ben) Hur, am Principal Legal Counsel at Samsung Electronics Co., Ltd. and am duly authorized to execute this verification of the accompanying Complaint under Section 337 of the Tariff Act of 1930, as Amended, on behalf of Complainant Samsung Electronics Co., Ltd.

I have read the Complaint and am aware of its contents. I hereby declare, in accordance with 19 C.F.R. § 210.12(a)(1), that to the best of my knowledge, information, and belief and based upon a reasonable inquiry under the circumstances:

1. The allegations contained in the Complaint are well grounded in fact and have evidentiary support, or are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery;
2. The claims and other legal contentions set forth in the Complaint are warranted by existing laws or by a good faith, non-frivolous argument for extension, modification, or reversal of existing law, or by the establishment of new law; and
3. The Complaint is not being filed for any improper purpose, such as to harass or cause unnecessary delay or needless increase in the cost of litigation.

Executed on December 12, 2025



Seung Woo (Ben) Hur
Principal Legal Counsel, Duly Authorized
Samsung Electronics Co., Ltd.

EXHIBIT T

REDACTED IN ITS ENTIRETY

EXHIBIT U

REDACTED IN ITS ENTIRETY

EXHIBIT V

REDACTED IN ITS ENTIRETY

EXHIBIT W

REDACTED IN ITS ENTIRETY

EXHIBIT X

REDACTED IN ITS ENTIRETY

EXHIBIT Y

REDACTED IN ITS ENTIRETY

EXHIBIT Z



**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of

CERTAIN WEARABLE DEVICES

Inv. No. 337-TA-1478

COMPLAINANTS' PRE-HEARING BRIEF

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TABLE OF ABBREVIATIONS

Abbreviation	Phrase
Oura or Respondents	Respondents Ouraring Inc. and Oura Health Oy
Samsung or Complainants	Complainants Samsung Electronics Co., Ltd. and Samsung Electronics America, Inc.
'359 Patent	U.S. Patent No. 10,642,359
'677 Patent	U.S. Patent No. 10,945,677
'675 Patent	U.S. Patent No. 10,231,675
'789 Patent	U.S. Patent No. 10,978,789
Sensor Patents	'359, '677, '675 Patents
Asserted Claims	'359 patent: claims 1 and 4 '677 patent: claims 1, 2, 3, and 9 '675 patent: claims 13 and 15 '789 patent: claims 6 (technical DI), and 7,9 (infringement)
DI	Domestic Industry
TDI	Technical prong of Domestic Industry
Accused Products	Oura Ring 4 Oura Ring 5 (a/k/a [REDACTED]) [REDACTED]
DI Product(s)	One or more of: - Galaxy Watch 4, 5, 6, 7, 8, Ultra - Galaxy Ring - Samsung Galaxy S22, S22+, S22 Ultra, S23, S23+, S23 Ultra, S24, S24+, S24 Ultra, S25, S25+, and S25 Edge
WDI Product(s)	One or more of the Wearable DI Products: - Galaxy Watch 4, 5, 6, 7, 8, Ultra - Galaxy Ring
PDI Product(s)	One or more of the Phone DI Products: Samsung Galaxy S22, S22+, S22 Ultra, S23, S23+, S23 Ultra, S24, S24+, S24 Ultra, S25, S25+, and S25 Edge
PCB	Printed Circuit Board
HR	Heart rate
SpO2	Blood oxygen (or blood oxygenation)
IR	Infrared

products’ slim, minimalist form factor and their reliable wireless performance—precisely the attributes that the claimed rigid-flex transmission circuit enables by routing high-frequency signals reliably through a compact, space-constrained housing without utilizing coaxial cables. *Id.*; CX-1427-CX-1432. Praise directed to these attributes is therefore probative of the non-obviousness of the claimed features, and not of unrelated aspects of the products. JDX-0008C, ¶291.

IX. DOMESTIC INDUSTRY ECONOMIC PRONG

The economic prong of the domestic industry requirement is satisfied when, with respect to the articles protected by the asserted patents, there exists in the United States one of three independently sufficient showings: “(A) significant investment in plant and equipment; (B) significant employment of labor or capital; or (C) substantial investment in its exploitation, including engineering, research and development, or licensing.” 19 U.S.C. § 1337(a)(3). As shown below, Samsung has satisfied the economic prong of the domestic industry requirement under sub-prongs (A) and (B); neither Oura nor its expert, John Jarosz, disputes that Samsung has an economic domestic industry in the United States. *See, e.g.*, JX-0049C at 28 (“[Q.] Is it your opinion that Samsung has no domestic industry in this case? A. No, I don't think I've drawn that specific opinion....”).

The Commission undertakes a “holistic review of all relevant considerations” examining “the articles of commerce, and the realities of the marketplace.” *Lashify Inc. v. Int’l Trade Comm’n*, 130 F.4th 948, 963 (Fed. Cir. 2025); *Wuhan Healthgen Biotechnology Corp. v. Int’l Trade Comm’n*, 127 F.4th 1334, 1339 (Fed. Cir. 2025). A complainant demonstrates significance by showing how its activities are important to the articles protected by the patent in the context of its own operations, the marketplace, and the industry in question. *Certain Printing & Imaging Devices & Components Thereof*, Inv. No. 337-TA-690, Comm’n Op. at 27–28 (Feb. 17, 2011).

[REDACTED]

The scope of cognizable activities under sub-prongs (A) and (B) is broad: *Lashify* confirmed that sub-prongs (A) and (B) do not cabin the range of enterprise activities whose costs may be counted—sales, marketing, customer support, and operations all qualify. *Lashify*, 130 F.4th at 963.

The relevant date for assessing domestic industry is the filing date of the complaint. *Philip Morris Prods. S.A. v. Int’l Trade Comm’n*, 63 F.4th 1328, 1341 n.4 (Fed. Cir. 2023). Because companies do not ordinarily track investments on a product-by-product basis, the Commission accepts reasonable allocation methodologies appropriate to a complainant’s circumstances and supported by the evidence. *Certain Mobile Device Holders and Components Thereof*, Inv. No. 337-TA-1028, Comm’n Op. at 18 (Mar. 22, 2018).

SEA, a wholly-owned subsidiary of SEC, is headquartered in Englewood Cliffs, New Jersey. JDX-32C, Ex. 11C (“Martinez Decl.”), ¶1; JDX-0015C, 157; CX-1441, 21, 67, 354; JDX-0045C, 20; RX-0411C; CX-1534. SEA is the Samsung entity that sells Samsung products in the United States.¹⁴ JDX-0002C, ¶28; CX-1441, JDX-0045C, 7; RX-0411C; CX-1534; CX-1553, 19; JDX-0015C, 48-49; JDX-32C, Ex. 11C, ¶11. Christopher Martinez, Director of Marketing for SEA, will testify that SEA is involved in numerous development and commercialization activities, including engineering, research, development, testing, customer service, importation, sales, marketing, and distribution of products in the United States, including wearables and smartphones. JDX-2C, ¶28C; CX-1441; JDX-0045C, 7, RX-0411C; CX-1534; CX-1553, 19; JDX-0015C, 48-49; JDX-32C, Ex. 11C, ¶1. It has over 40 facilities across the U.S. and employs thousands of personnel tasked with commercializing U.S. products, including its smartphones, wearables, and

¹⁴ Contrary to Oura’s assertion, SEA is authorized to practice the patents in the U.S. *See, e.g., Certain Products Containing Interactive Program Guide and Parental Control Technology*, Inv. No. 337-TA-845, Final Initial Determination at 276 (June 7, 2013).

[REDACTED]

smart rings in the U.S. JDX-32C, Ex. 11C, ¶3. [REDACTED]

[REDACTED]

[REDACTED] JDX-0015C, 91, 140, 157; JDX-2C, ¶91; JDX-0032, ¶1.

Samsung has made, and continues to make, significant and/or substantial long-term and ongoing economic investments in the United States for the domestic industry products. Samsung's investments in plant and equipment, and labor or capital are economically significant within the meaning of sub-prongs (A) and (B).

SEA's extensive domestic business operations for the domestic industry products include

[REDACTED]

[REDACTED]. JDX-0002C, ¶16; JDX-0015C, 130; JX-0047, 10-11; CX-1469C. [REDACTED]

[REDACTED] JDX-0002C, ¶16; JDX-0015C, 130; JX-0047, 10-11; CX-1469C. The DI Products in this matter include Samsung Galaxy smartwatches, Galaxy rings (collectively the WDI Products), and Galaxy smartphones (the PDI Products). JDX-0002C, ¶16; JDX-0015C, 130; JX-0047, 10-11; CX-1469C.

Samsung's DI Products belong to the Samsung mobile division [REDACTED], which also includes non-practicing tablets, earbuds, and other smartphones. JDX-0002C, ¶17; RX-0369C; JX-0047, 9-10; JDX-0015C, 61-63. [REDACTED]

[REDACTED] JDX-0002C, ¶17; RX-0369C; JX-0047, 9-10; JDX-0015C, 61-63. Given that Samsung's mobile products include all smartphones and certain tablets, both of which make up a significant portion of U.S. unit sales in their respective categories, the DI Products represent significant sales, and are important products for Samsung. CX-1556; CX-1524; JDX-0002C, ¶17; RX-0369C; JX-0047, 9-

[REDACTED]

10; JDX-0015C, 61-63.

A. Allocation Methodology

In the ordinary course of business, Samsung generally records costs by [REDACTED]. JDX-0002C, ¶94; JDX-0015C, 26-27, 35-36, 57-58. Samsung employs a [REDACTED]. JDX-0002C, ¶95; JDX-0015C, 58, 82-83, 101-103, 111. [REDACTED] JDX-0002C, ¶95; JDX-0015C, 95-96. This includes the DI Products. JDX-0002C, ¶95. Then, expenses associated with that work can be allocated based on the [REDACTED] associated with the DI Products as a portion of all mobile products. At a high level, Samsung's investments in labor and capital for the DI Products may be calculated by allocating labor or capital costs recorded under SEA's [REDACTED] divisions. JDX-0002C, ¶95; JDX-0015C, 94. Facility expenses are allocated by the same cost centers. JDX-0002C, ¶163; JDX-0032, ¶2.

Contrary to the arguments presented by Mr. Jarosz, the employees represented in Samsung's spreadsheets as [REDACTED] or based off the allocation model DI specific products are [REDACTED]. JDX-0002C, ¶95; JDX-0015C, 131-132. Samsung's U.S. mobile products include the following categories: [REDACTED]. JDX-0002C, ¶95; JDX-0015C, 61-63. Overall, these products are associated with a [REDACTED]. JDX-0002C, ¶95; JDX-0015C, 58, 61-63, 82-83, 94-98, 101-103, 111, 131-132; RX-0369C; JX-0047, 9-10. Employees and expenses associated

[REDACTED]
[REDACTED]
with work done on, e.g., [REDACTED]

[REDACTED]. As Mr. Jarosz acknowledged, Samsung, like many companies (including Oura), does not categorize or track its employees or expenses on a product-by-product basis. JDX-49C. Instead, Samsung tracks those expenses and employees [REDACTED]. This [REDACTED] addresses the realities of Samsung's employees' work—that such work often relates to multiple products within a product ecosystem inside the business unit. For instance, Mr. Martinez will testify that [REDACTED]

[REDACTED]. JDX-15C.

The starting point for the calculations of SEA's investments under sub-prongs (A) and (B) is a document that shows total expenses for SEA, including [REDACTED]. JDX-0002C, ¶95; CX-1469C at tab [REDACTED]; JDX-0015C, 93-94. The data in this spreadsheet comes from an underlying financial database at Samsung and is the same data SEA records and uses in the ordinary course of business. *Id.* As Mr. Martinez will testify, the high-level cost centers associated with this work are [REDACTED]. JDX-0002C, ¶96; JDX-0015C, 93-94, 97-98; CX-1469C at tab [REDACTED] (*see, e.g.,* [REDACTED]). High-level cost centers associated with [REDACTED]. JDX-0002C, ¶95; JDX-0015C, 58, 61-63, 82-83, 94-98, 101-103, 111, 131-132; RX-0369C; JX-0047, 9-10.

[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]

these departments were identified as having SEA employees whose functions related to mobile products, including the DI Products. JDX-0002C, ¶97; JDX-0015C, 57-58 95-97; JDX-53C. JX-0047, 10-11; CX-1469C at tabs [REDACTED] [REDACTED]

[REDACTED]

By cost center, Samsung's document CX-1469C provided monthly costs for the period January 1, 2021 through November 30, 2025. JDX-0002C, ¶98; CX-1469C at tab [REDACTED] (*see, e.g.*, [REDACTED]). Samsung's labor or capital costs are generally categorized as: [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

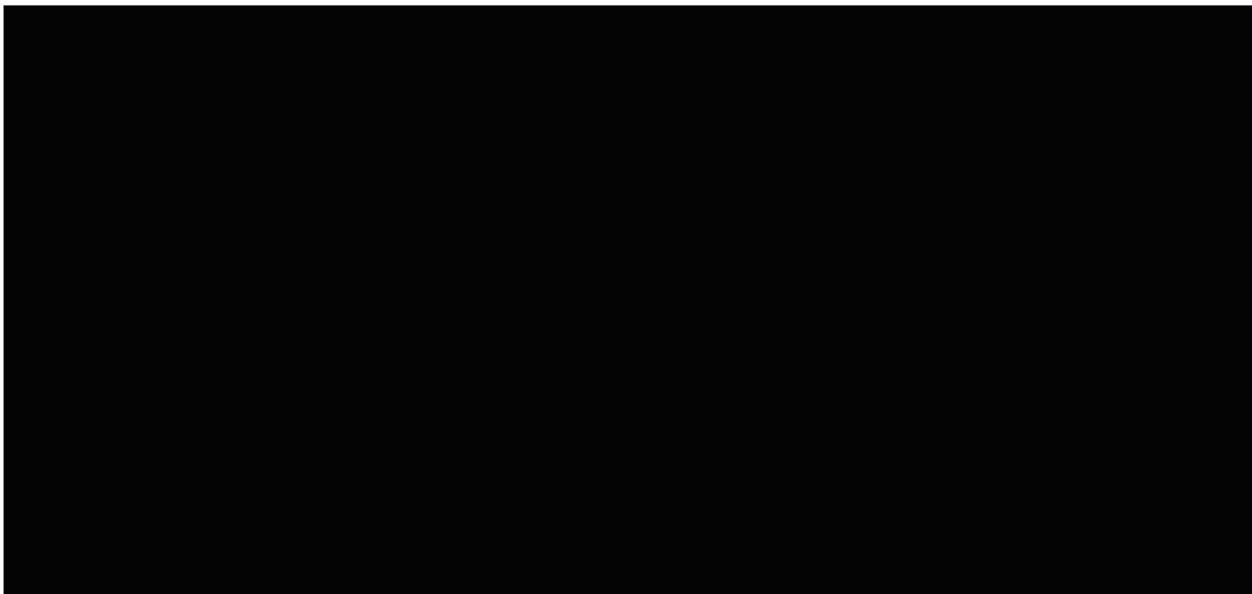
JDX-0002C, ¶98, Ex. 4; CX-1469C at tab [REDACTED] [REDACTED]. Samsung's data in CX-1469C also includes an [REDACTED] [REDACTED], where the headcount for each month from January 31, 2021 through November 30, 2025 can be derived. JDX-0002C, ¶99; CX-1469C at tabs [REDACTED] [REDACTED] JDX-0015C, 108-109.

After identifying labor or capital costs that are specific to Samsung's U.S. mobile products, Samsung's expert, Ms. Julia Rowe, performed a sales-based allocation to isolate amounts that are attributable to the DI Products. Using a sales allocation to allocate investments to the DI Products is [REDACTED] and a reasonable approach here. JDX-0002C, ¶100; JDX-0015C, 58, 82-83, 101-103, 111.A [REDACTED] was most appropriate for each of

[REDACTED]

[REDACTED]

JDX-0002C, ¶101; JDX-0015C, 122-123. While this includes both [REDACTED]
[REDACTED], Samsung does not organize its business strictly by product or function,
and the included employees work on [REDACTED]. *Id.* On
average, Samsung's U.S. [REDACTED] from the domestic industry products comprised
approximately [REDACTED] of Samsung's total U.S. mobile product [REDACTED]. JDX-0002C, ¶101, Ex.
5.0. This is summarized below:



Allocating in proportion to Samsung's [REDACTED] is reflective of SEA's business
practices. JDX-0002C, ¶101; JDX-0015C, 58, 82-83, 101-103, 111 [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. Sales-based allocations described herein apply
the ratios in the above table.

Facility expenses are allocated by the same cost centers described above with regards to

[REDACTED]

labor and capital. JDX-0002C, Exs. 1.1, 3.0; JDX-32C, Ex. 11C, ¶2. Therefore, the approach for plant and equipment is very similar to the approach described above for labor and capital. The expenses allocated to plant and equipment include [REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶164, Ex. 4.0. These expenses are allocated to the different groups or cost centers of Samsung in the ordinary course of business. JDX-0002C, ¶164. The amounts described herein are based on this internal allocation methodology. *Id.* These expenses are further allocated to the domestic industry products using the same sales-based methodology described above with regards to labor or capital.

Mr. Jarosz's challenges to the above allocation strategy are misplaced. First, Mr. Jarosz himself admitted repeatedly that he does not "understand the Samsung records at all." JDX-49C, 39-42, 44-46. When asked at his deposition regarding these concerns, Mr. Jarosz demonstrated his lack of familiarity with the underlying data, how to filter the data to obtain an appropriate base of expenses, and how to apply the [REDACTED] methodology to obtain the results that Ms. Rowe obtained. *Id.*

Second, Ms. Rowe's analysis and findings are supported by her report and SEA data. The calculation of investments and application of sales-based allocation methodology herein is accurate and reflective of SEA's business practices. The expenses and cost centers relied upon are sufficiently tied to the DI Products and constitute qualifying DI investments. As described below with regards to both labor or capital and plant and equipment, Ms. Rowe's DI analysis relied on an investment base of a proper scope, and the underlying activities of the selected groups and cost centers relate to the DI Products.

[REDACTED]

B. Samsung's Domestic Investments in Labor or Capital Satisfy Section 1337(a)(3)(B)

Ms. Rowe will testify that Samsung has made, and will continue to make, significant domestic investments in labor or capital with respect to the DI Products. This includes the cost of employees dedicated to the development of Samsung products and services, U.S.-specific market strategy and distribution, U.S.-specific product packaging, and customer service. SEA employs [REDACTED] direct employees and contractors, and invests [REDACTED] dollars in product strategy, management, planning, research, development, engineering, testing, compliance, quality control, technical support, sales, marketing, distribution, warehousing, service, warranty, repair, and replacement for Samsung mobile products in the U.S., including the WDI and PDI Products. JDX-0002C.

Over the period leading up to the complaint in this Investigation, from January 1, 2022 through November 30, 2025, Samsung invested over [REDACTED] in labor and capital associated with the domestic industry products practicing the '789 patent, and [REDACTED] in labor and capital associated with the domestic industry products practicing the '677 patent, the '675 patent, and the '359 patent. JDX-0002C, ¶18, Exs. 1.0, 1.2, 9.2, 10.1. These amounts are significant in the context of Samsung's mobile product investments. The labor and capital investments in the '789 patent make up [REDACTED] of SEA's labor and capital investments in all mobile products, and the labor and capital investments in the '359, '675, and '677 patent make up [REDACTED] of SEA's labor or capital investments in all mobile products. *Id.* A detailed analysis and allocation of SEA's labor or capital investments, along with an explanation of each department's work and employees, is provided below.

1. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] JDX-32C, Ex. 11C, ¶10; JDX-0015C, 128-129, 161-162. As of the end of November 2025, approximately [REDACTED] full-time employees worked in [REDACTED] in the US. JDX-0002C, ¶107, Ex. 9.3; JDX-32C, Ex. 11C, ¶10. From January 1, 2022 through November 30, 2025, SEA invested approximately [REDACTED] [REDACTED] in [REDACTED] in the United States. JDX-0002C, ¶108, Ex. 3.1. Samsung's labor and capital investments in the [REDACTED] were primarily comprised of [REDACTED]. *Id.*

In total, Samsung invested approximately [REDACTED] in domestic investments in labor or capital in [REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶112, Ex. 3.0. PDI Product amounts are allocable to the '789 patent, and the WDI Product amounts are allocable to the other asserted patents. *Id.* Applying a sales-based allocation to Samsung's domestic investments in labor or capital for the [REDACTED] yields [REDACTED] allocable to the '789 patent;

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

2.

[REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶113; JDX-32C, Ex. 11C,

¶7. [REDACTED]

[REDACTED] JDX-0002C, ¶114; CX-1695C, 15-16. [REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶115; JDX-0015C, 9. [REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶115; JDX-0015C, 9-10. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶116; JDX-32C, Ex. 11C,

¶¶18-24; JDX-0045C, 13. [REDACTED] JDX-0002C, ¶115;

[REDACTED]

JDX-0015C, 9-10.

The [REDACTED] team is located in the United States. JDX-0002C, ¶117. As of the end of November 2025, [REDACTED] U.S. full time employees worked in this group. JDX-0002C, ¶117; JDX-32C, Ex. 11C, ¶8. From January 1, 2022 through November 30, 2025, SEA invested approximately [REDACTED] [REDACTED]. JDX-0002C, ¶117, Exs. 9.3, 3.2. Samsung's labor and capital investments in the [REDACTED] group were primarily comprised of [REDACTED]. JDX-0002C, ¶118, Ex. 3.2. [REDACTED] [REDACTED]. *Id.*

In total, Samsung invested more than [REDACTED] in domestic investments in labor and capital in [REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶121, Ex. 3.0. Applying a sales-based allocation to Samsung's domestic investments in labor and capital for the [REDACTED] group yields [REDACTED] allocable to the '789 patent, and amounts allocable to the '359 patent, the '677 patent, and/or the '675 patent totaling [REDACTED] [REDACTED], during the relevant timeframe. JDX-0002C, ¶¶112-121.

[REDACTED]

[REDACTED]

[REDACTED]

3. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶122; JDX-0015C, 114-

115, 121-122.

[REDACTED]

[REDACTED]

[REDACTED] JDX-0045C, 12.

All employees classified as belonging to the [REDACTED] are based in the United

States. JDX-0002C, ¶123; JDX-32C, Ex. 11C, ¶6; JDX-0045C, 11-12. As of the end of November

[REDACTED]

2025, [REDACTED] U.S. full time employees worked in this group. JDX-0002C, ¶123; JDX-32C, Ex. 11C, ¶7. From January 1, 2022 through November 30, 2025, SEA invested approximately [REDACTED]. JDX-0002C, ¶123. Samsung's labor and capital investments in the [REDACTED] group are primarily comprised of [REDACTED].

In total, Samsung invested approximately [REDACTED] in domestic investments in labor and capital in [REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶127, Ex. 3.0. Applying a sales-based allocation to Samsung's domestic investments in labor and capital for the [REDACTED] group yields [REDACTED] allocable to the '789 patent, and amounts allocable to the '359 patent, the '677 patent, and/or the '675 patent totaling [REDACTED]

[REDACTED]. *Id.*

4. [REDACTED]

Samsung also has [REDACTED] employees focused on mobile products (including the DI Products) in the United States. *Certain Printing & Imaging Devices & Components Thereof*, Inv. No. 337-TA-690, Comm'n Op. at 27 (Feb. 17, 2011). [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶129; CX-1469C.

As of the end of November 2025, [REDACTED] U.S. full time employees worked in the U.S. [REDACTED] functions described above. JDX-0002C, Exs. 9.3, 3.4; JDX-32C, Ex. 11C, ¶9. From January 1, 2022 through November 30, 2025, SEA invested approximately [REDACTED] [REDACTED]. JDX-0002C, Exs. 9.3, 3.4. Samsung’s labor and capital investments in the [REDACTED] group were primarily comprised of [REDACTED] [REDACTED]. JDX-0002C, Ex. 3.4.

In total, Samsung invested approximately [REDACTED] in domestic investments in labor and capital in [REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶134, Ex. 3.0. Applying a sales-based allocation to Samsung’s domestic labor and capital investments in [REDACTED] yields [REDACTED] allocable to the ‘789 patent, and amounts allocable to the ‘359 patent, the ‘677 patent, and/or the ‘675 patent totaling [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

5. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

As of the end of November 2025, [REDACTED] U.S. full time employees worked in [REDACTED] in the United States. JDX-0002C, Exs. 9.3, 3.5; JDX-32C, Ex. 11C, ¶10-11. From January 1, 2022 through November 30, 2025, SEA invested approximately [REDACTED] [REDACTED]. *Id.* Samsung's labor and capital investments in the [REDACTED] group were primarily comprised of [REDACTED] [REDACTED]. JDX-0002C, Ex. 3.5.

In total, Samsung invested approximately [REDACTED] in domestic investments in labor

[REDACTED]

and capital in [REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶140, Ex. 3.0. Applying a sales-based allocation to Samsung's domestic labor and capital investments in the [REDACTED] group yields [REDACTED] allocable to the '789 patent, and amounts allocable to the '359 patent, the '677 patent, and/or the '675 patent totaling [REDACTED]

[REDACTED]

[REDACTED]. JDX-0002C, ¶¶133-140; JDX-0015C, 133-136.

[REDACTED]

6. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

As of the end of November 2025, [REDACTED] U.S. full time employees worked in this group. JDX-0002C, ¶144, Ex. 9.3; JDX-32C, Ex. 11C, ¶10. From January 1, 2022 through November 30, 2025, SEA invested approximately [REDACTED]. *Id.* Samsung’s labor and capital investments in the [REDACTED] group are primarily comprised of [REDACTED]. JDX-0002C, ¶145, Ex. 3.6; JDX-0015C, 153-155.

In total, Samsung invested approximately [REDACTED] in domestic investments in labor and capital in [REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶148, Ex. 3.0. Applying a sales-based allocation to Samsung’s domestic labor and capital investments in the [REDACTED] group yields [REDACTED] allocable to the ‘789 patent, and amounts allocable to the ‘359 patent, the ‘677 patent, and/or the ‘675 patent totaling [REDACTED]. JDX-0002C, ¶¶141-149.

[REDACTED]

[REDACTED]

[REDACTED]

7. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

As of the end of November 30, 2025, [REDACTED] U.S. full time employees worked in this group. *Id.* From January 1, 2022 through November 30, 2025, SEA invested approximately [REDACTED] in [REDACTED]. *Id.* Samsung's labor and capital investments in the [REDACTED]

[REDACTED]

[REDACTED] *Id.*

In total, Samsung invested approximately [REDACTED] in domestic investments in labor and capital in [REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶160, Ex. 3.0. Applying a sales-based allocation to Samsung's domestic investments in labor and capital for the [REDACTED] group yields [REDACTED] allocable to the '789 patent, and amounts allocable to the '359 patent, the '677 patent, and/or the '675 patent totaling [REDACTED]

[REDACTED]. JDX-0002C ¶¶147-161.

[REDACTED]

8. SEA's Total Domestic Labor and Capital Investments Related to the DI Products

Samsung's domestic investments in labor and capital for the domestic industry products for the '789 patent are summarized below:



JDX-0002C, Exs. 1.1, 3.0.

Samsung's domestic investments in labor and capital for the domestic industry products for the other asserted patents are summarized below:

[REDACTED]

C. Samsung's Domestic Investments in Plant and Equipment Satisfy Section 1337(a)(3)(A)

Samsung has made, and will continue to make, significant domestic investments in plant and equipment with respect to the domestic industry products. Over the period January 1, 2022 through November 30, 2025, Samsung invested approximately [REDACTED] in plant and equipment associated with the domestic industry products practicing the '789 patent, and [REDACTED] in plant and equipment associated with the domestic industry products practicing the '677 patent, the '675 patent, and the '359 patent. JDX-0002C, ¶19, Ex. 1.0. These amounts are significant in the context of Samsung's mobile product investments. *Id.* The domestic plant and equipment investments in the '789 patent make up [REDACTED] of SEA's plant and equipment investments

[REDACTED]

in all mobile products, and the domestic plant and equipment investments in the '359, '675, and '677 patents make up [REDACTED] of SEA's plant and equipment investments in all mobile products. *Id.*

The expenses allocated to plant and equipment include [REDACTED]

[REDACTED]

[REDACTED]. JDX-0002C, ¶164, Ex. 4.0. These expenses are allocated to the different groups or cost centers of Samsung in the ordinary course of Business, and are allocated by the same cost centers as described with regards to labor and capital. JDX-0002C, ¶¶163-164, Ex. 4.0. The amounts described below are based on this internal allocation methodology. JDX-0002C, ¶164, Ex. 4.0. These expenses are further allocated to the domestic industry products using the same sales-based methodology described with regards to labor and capital.

The following groups include plant and equipment investments related to the domestic industry products: [REDACTED]

[REDACTED]. JDX-0002C, ¶97.

1. [REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶165, Ex. 2.1.

The C&S team is primarily located in [REDACTED]. JDX-0002C, ¶166; Martinez Decl. ¶10; JDX-0045C, 9, 16; JDX-0015C, 161-162, 165-166; JDX-0045C, 21; RX-0411C; CX-1592C, 856, 859, 872-873; CX-1594C; CX-1597C, 958. [REDACTED]

[REDACTED]

office totals [REDACTED] and housed over [REDACTED] employees as of July 2025. *Id.* The [REDACTED]. *Id.* There are also [REDACTED] employees located in [REDACTED]. JDX-0002C, ¶167; JDX-0015C, 130-131; JDX-0045C, 22; RX-0411C. [REDACTED]

[REDACTED]

[REDACTED]. *Id.*

In total, Samsung invested approximately [REDACTED] in domestic plant and equipment in C&S between January 1, 2022 and November 30, 2025. JDX-0002C, ¶169, Ex. 2.0. Applying a sales-based allocation yields [REDACTED] allocable to the ‘789 patent, and amounts allocable to the ‘359 patent, the ‘677 patent, and/or the ‘675 patent totaling [REDACTED]. JDX-0002C, ¶¶168-169, Ex. 2.0.

[REDACTED]

2. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

JDX-0002C, ¶170, Ex. 2.2.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶171; JDX-0045C, 9, 12, 14-16, 20; RX-0411C; JDX-0015C, 160-161; CX-1510. [REDACTED]

[REDACTED] *Id.*

In total, Samsung invested approximately [REDACTED] in plant and equipment in [REDACTED] [REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶173, Ex. 2.0. Applying a sales-based allocation yields [REDACTED] allocable to the '789 patent, and amounts allocable to the '359 patent, the '677 patent, and/or the '675 patent totaling [REDACTED]

[REDACTED]. JDX-0002C, ¶¶172-173, Ex. 2.0.

3. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶174, Ex. 2.3. [REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶175; JDX-0045C, 9, 14-16, 20-21;
RX-0411C; JDX-0015C, 12-14, 128-129, 160-161, 166-169; CX-1593C; CX-1596C; CX-1550.

Other locations include:

- [REDACTED]
[REDACTED]
[REDACTED]

- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

- [REDACTED]
[REDACTED]
[REDACTED]

In total, Samsung invested approximately [REDACTED] in plant and equipment in [REDACTED]
[REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶177, Ex. 2.0.

Applying a sales-based allocation to Samsung’s domestic investments in plant and equipment for

[REDACTED]

the [REDACTED] group yields [REDACTED] allocable to the '789 patent, and amounts allocable to the '359 patent, the '677 patent, and/or the '675 patent totaling [REDACTED]. JDX-0002C, ¶¶173-178; JDX-0045C, 9, 14-16, 20-21; RX-0411C; JDX-0015C, 12-14, 128-129, 160-161, 166-169; CX-1593C; CX-1596C; CX-1550.

[REDACTED]

4. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. JDX-0002C, ¶179; JDX-0045C, 9, 14, 16, 20-21; RX-0411C; JDX-0015C, 157, 168-169; CX-1593C; CX-1596C; CX-1550; JDX-0015C, 166, 169. [REDACTED] has [REDACTED] and housed [REDACTED] employees as of July 2025. *Id.*

[REDACTED]

In total, Samsung invested approximately [REDACTED] in plant and equipment in [REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶181, Ex. 2.0. Applying a sales-based allocation to Samsung's domestic investments in plant and equipment for the [REDACTED] group yields [REDACTED] allocable to the '789 patent, and amounts allocable to the '359 patent, the '677 patent, and/or the '675 patent totaling [REDACTED] [REDACTED]. JDX-0002C, ¶¶177-182; JDX-0045C, 9, 14, 16, 20-21; RX-0411C; JDX-0015C, 157, 168-169; CX-1593C; CX-1596C; CX-1550; JDX-0015C, 166, 169.

[REDACTED]

5. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶182, Ex. 2.5. [REDACTED]

[REDACTED] JDX-0002C, ¶183, Ex. 2.0; JDX-0015C, 160-161.

In total, Samsung invested approximately [REDACTED] in plant and equipment in [REDACTED] [REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶184, Ex. 2.0. Applying a sales-based allocation to Samsung's domestic investments in the [REDACTED]

[REDACTED]

group yields [REDACTED] allocable to the '789 patent, and amounts allocable to the '359 patent, the '677 patent, and/or the '675 patent totaling [REDACTED]. JDX-0002C, ¶¶180-186; JDX-0015C, 160-161, 173; JDX-0045C, 18.

[REDACTED]

6. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶185, Ex. 2.6. [REDACTED]

[REDACTED] JDX-0002C, ¶186; JDX-0045C, 18, 21; JDX-0015C, 173; RX-0411C. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

In total, Samsung invested approximately [REDACTED] in plant and equipment in [REDACTED] [REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶188, Ex. 2.0.

[REDACTED]

Applying a sales-based allocation to Samsung's domestic investments in plant and equipment for the [REDACTED] group yields [REDACTED] allocable to the '789 patent, and amounts allocable to the '359 patent, the '677 patent, and/or the '675 patent totaling [REDACTED]

[REDACTED]

JDX-0002C, ¶¶184-188; JDX-0045C, 18, 21; JDX-0015C, 160-161, 173; RX-0411C.

7. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶189, Ex. 2.7. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶190; JDX-0015C, 12-14, 173; JDX-0045C, 21; RX-0411C; CX-1598C; CX-1599C; CX-1602C; CX-1601C; CX-1604C. [REDACTED]

[REDACTED] *Id.*

[REDACTED]

In total, Samsung invested approximately [REDACTED] in plant and equipment in [REDACTED] [REDACTED] between January 1, 2022 and November 30, 2025. JDX-0002C, ¶192. Applying a sales-based allocation to Samsung's domestic investments in plant and equipment for the [REDACTED] groups yields [REDACTED] allocable to the '789 patent, and amounts allocable to the '359 patent, the '677 patent, and/or the '675 patent totaling [REDACTED] [REDACTED]. JDX-0002C, ¶¶189-192; JDX-0015C, 12-14, 173; JDX-0045C, 21; RX-0411C; CX-1598C; CX-1599C; CX-1602C; CX-1601C; CX-1604C.

[REDACTED]

8. SEA's Total Domestic Investments in Plant and Equipment Related to the DI Products

Samsung's domestic investments in plant and equipment for the domestic industry products for the '789 patent are summarized below:



JDX-0002C, Exs. 1.1, 2.0.

Samsung's domestic investments in plant and equipment for the domestic industry products for the '359, '677, and '675 patents are summarized below:

JDX-0002C, Exs. 1.1, 2.0.

D. Samsung's Domestic Investments in Labor and Capital (Comprehensive)

In a more comprehensive view of labor and capital (where capital includes Samsung's domestic investments in plant and equipment), Samsung's domestic investments in labor and capital (comprehensive) in the '789 patent between January 1, 2022 through November 30, 2025 were approximately [REDACTED]:

[REDACTED]

JDX-0002C, Exs. 1.1, 2.0.

In a more comprehensive view of labor and capital (where capital includes Samsung's domestic investments in plant and equipment, Samsung's domestic investments in labor and capital (comprehensive) in the '359, '677, and '675 patents between January 1, 2022 through November 30, 2025 were more than [REDACTED]:

JDX-0002C, Ex. 1.1.

E. Samsung's Domestic Investments Are Significant And Substantial

Samsung's domestic investments in the DI Products are significant and substantial in the context of SEA's mobile division, in the context of Samsung's foreign expenditures, and in the context of the industry. Samsung's domestic investments are expected to continue.

The domestic investments in each of the asserted patents are significant. JDX-0002C, ¶22, Ex. 9.0. Samsung's domestic investments in labor or capital (comprehensive) represent approximately [REDACTED] for the DI Products, both for the '789 patent (Galaxy S22-S25 smartphones), and the '359, '675, and '677 patents (Galaxy Watches 4-8 and Ultra and Galaxy Ring). *Id.* When compared to SEA's overall investments in its mobile business, the domestic industry investments in the '789 patent make up over [REDACTED] of Samsung's investments in domestic plant and equipment and domestic labor or capital. JDX-0002C, ¶23, Ex. 9.0. Domestic

investments in the '359, '657, and '677 patents represent approximately [REDACTED] of Samsung's domestic investments in plant and equipment and labor or capital. *Id.*

1. Samsung's Domestic Investments Are Significant and Substantial In the Context of the Domestic Industry and SEA's Mobile Division

Altogether, Samsung's U.S. [REDACTED] from the DI Products comprised approximately [REDACTED] of Samsung's total U.S. mobile product [REDACTED]. JDX-0002C, Ex. 5.0.

For the '789 patent, Samsung's U.S. [REDACTED] from the smartphone DI Products comprised approximately [REDACTED] of Samsung's U.S. mobile product [REDACTED]. JDX-0002C, Ex. 5.0. For the other asserted patents, Samsung's U.S. [REDACTED] from the WDI Products comprised approximately [REDACTED] of Samsung's U.S. mobile product [REDACTED]. *Id.* The DI Products include a new product line for Samsung, the Galaxy Ring. The Galaxy Ring is Samsung's first smart ring product. *Id.* While the Samsung Galaxy Ring represents approximately [REDACTED] of Samsung's mobile product [REDACTED] for the period July 1, 2024 through December 31, 2025, it also represents a new form factor to the Samsung mobile product family. JDX-0002C, ¶203, Ex. 5.0; CX-1542.

Each of the net revenue percentages for the Samsung DI Products is significant when considered in the context of Samsung's overall U.S. mobile sales. Samsung mobile products make up a significant percentage of sales within the United States in general. Since 2020, Samsung has comprised approximately 20% to 30% of U.S. smartphone sales. JDX-0002C, ¶204; CX-1556; CX-1524; JDX-0015C, 33-34, 61-63; RX-0369C; JX-0047, 9-10. In addition to the Samsung Galaxy S series smartphones which are PDI Products, Samsung also sells the Z series line of foldables and the A series line, which is a lower-priced device. *Id.* Samsung tablets, some of which belong to Samsung's mobile product and group, made up 24% of tablet ownership in the United States as of September 2025. *Id.* In the context of these sales, the WDI Products making

[REDACTED]

up approximately [REDACTED] of overall [REDACTED] is significant. *Id.*

The work done by SEA with respect to the DI Products is significant and critical for the sale of these products in the United States. JDX-0002C, ¶205, Ex. 5.0; JDX-0015C, 49-51. [REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶206; JDX-0015C, 9-10, 36-37. [REDACTED]

[REDACTED] *Id.* The work done by SEA on the DI Products continues through the [REDACTED]. JDX-0002C, ¶207; JDX-0015C, 9-11.

[REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶208; JDX-0015C, 43, 45-46. [REDACTED]

[REDACTED]

The investments made by Samsung in the DI Products in labor and capital comprise a significant portion of Samsung's U.S. [REDACTED] of DI Products. Samsung's domestic investments in labor and capital (comprehensive) for the DI Products totaled more than [REDACTED] for the '789 patent and more than [REDACTED] for the other asserted patents from the period January 1, 2022 through November 30, 2025. JDX-0002C, ¶210, Ex. 1.1. Samsung's domestic investments made up approximately [REDACTED] of Samsung's [REDACTED] of PDI Products practicing the '789 patent, and [REDACTED] of Samsung's [REDACTED] of WDI Products practicing the other asserted patents. JDX-0002C, ¶¶210-211, Exs. 1.1, 9.0, 9.2, 10.0, 10.1.

Samsung investments in plant and equipment for the DI Products also comprise a

[REDACTED]

significant portion of Samsung's operating expenses associated with the DI Products sold in the United States. Samsung financial documents recording the sales of the DI Products also include

[REDACTED]. JDX-0002C, ¶212, Exs. 7.2, 7.3; JDX-0015C, 82-83, 86. [REDACTED]

[REDACTED] JDX-0002C, ¶¶212-213, Exs. 7.2, 7.3; JDX-0015C, 81-83, 86, 107; RX-0409C.

[REDACTED] JDX-0002C, ¶213, Ex. 9.1; JDX-0015C, 81-82, 107; RX-0409C. Samsung's domestic investments in plant and equipment made up approximately [REDACTED] of Samsung's [REDACTED] of PDI Products practicing the '789 patent, and [REDACTED] of Samsung's [REDACTED] of WDI Products practicing the other asserted patents. JDX-0002C, ¶¶213-214, Ex. 9.1; JDX-0015C, 51-52, 81-82, 107-108; RX-0409C.

Samsung's domestic investments in labor or capital (comprehensive) made up approximately [REDACTED] of Samsung's [REDACTED] of PDI Products practicing the '789 patent, and [REDACTED] of Samsung's [REDACTED] of WDI Products practicing the other asserted patents. JDX-0002C, ¶216; JDX-0015C, 81-83, 107-108; RX-0409C. This is indicative of a relatively significant amount of dedicated activity that is applicable to the DI Products, [REDACTED]

[REDACTED] *Id.*

The investments made by Samsung in the DI Products in plant and equipment comprise a significant portion of Samsung's total investments directed to the [REDACTED]

[REDACTED]

[REDACTED] divisions of SEA. JDX-0002C, ¶218, Ex. 9.1. SEA's overall plant and equipment investments in mobile products also include [REDACTED]. *Id.* Samsung's domestic investments in plant and equipment for the DI Products associated with the '789 patent comprised approximately [REDACTED] of total domestic investments in plant and equipment in 2022, and this grew to approximately [REDACTED] in 2024. JDX-0002C, ¶¶218-219, Ex. 9.1. [REDACTED]

[REDACTED]

[REDACTED]

The investments made by Samsung in the DI Products in labor or capital (comprehensive) comprise a significant portion of Samsung's total labor and capital investments directed to the [REDACTED] of SEA. JDX-0002C, ¶220, Ex. 9.0. SEA's domestic labor and capital investments, too, [REDACTED]. *Id.* Samsung's domestic investments in labor and capital (comprehensive) for the PDI Products associated with the '789 patent comprised approximately [REDACTED] of total domestic investments in labor and capital and plant and equipment in 2022, and this grew to approximately [REDACTED] in 2024. JDX-0002C, ¶¶220-221, Ex. 9.0. [REDACTED]

[REDACTED]

[REDACTED]

Further, the significance of Samsung's investments in the context of mobile services may be seen by comparing the relative headcounts of the employees dedicated to the DI Products to the overall headcount [REDACTED] divisions of SEA. The headcount attributable to the DI Products comprised more than [REDACTED] of the overall domestic headcount for SEA employees working on mobile products as of the end of November 2025. JDX-0002C, ¶¶222-

[REDACTED]

224, Ex. 9.3; CX-1469C; JDX-0015C, 108-109.

2. Samsung's Domestic Investments Are Significant and Substantial In the Context of Samsung's Foreign Expenditures

[REDACTED]

[REDACTED] JDX-0002C, ¶225; JDX-0015C, 91. [REDACTED]

[REDACTED] *Id.* [REDACTED]

[REDACTED] *Id.* [REDACTED]

[REDACTED]

Samsung's domestic investments in the DI Products are significant in the context of foreign costs associated with the DI Products. The investments made by Samsung in the DI Products in labor and capital (comprehensive) comprise a significant portion of Samsung's U.S. cost of goods sold for the DI Products. Samsung's domestic investments in labor and capital (comprehensive) for the DI Products totaled more than [REDACTED] for the '789 patent and more than [REDACTED] for the other asserted patents from January 1, 2022 through November 30, 2025. JDX-0002C, ¶227, Exs. 1.1, 9.0. Samsung's domestic investments made up almost [REDACTED] of Samsung's [REDACTED] for DI Products sold in the U.S. practicing the '789 patent, and [REDACTED] of Samsung's [REDACTED] for DI Products sold in the U.S. practicing the other asserted patents. JDX-0002C, ¶¶227-228, Exs. 1.1, 9.0.

The DI Products are qualitatively and quantitatively significant to Samsung in a global context. SEC is one of the largest providers by volume of wearables and smartphones in the world, and SEA is one of the top providers by volume of wearables and smartphones in the United States. JDX-0002C, ¶229; JDX-32C, Ex. 11C, ¶1-2; CX-1695C, 15; JDX-0015C, 37-38, 49. The U.S. is a major market for Samsung with respect to the DI Products. *Id.* Samsung's net revenues

associated with the '789 patent made up approximately [REDACTED] of Samsung's [REDACTED] associated with the '789 patent from the DI Products. Samsung's net revenues associated with the other asserted patents made up approximately [REDACTED] of Samsung's [REDACTED] associated with the other asserted patents from the DI Products. JDX-0002C, ¶¶230-231; CX-1696C, 24; JDX-0021C, 44-46, 74-75. Given that Samsung broadly operates in 76 countries, having over [REDACTED] for a group of products associated with one specific country is significant. JDX-0002C, ¶232; CX-1512.

3. Samsung's Domestic Investments Are Significant and Substantial in the Context of the Industry

Samsung's DI Products are an important part of the U.S. mobile product competitive environment. By 2020, Samsung smartphones comprised approximately 25% of U.S. smartphone sales, competing primarily with Apple, which comprised approximately 50% of smartphone sales. JDX-0002C, ¶234, Ex. 9.6; CX-1556; CX-1524; CX-1552. Since 2020, Samsung has remained relatively stable, comprising approximately 20% to 30% of U.S. smartphone sales. *Id.* The domestic industry smartphone products, the Galaxy S series, are Samsung's flagship smartphones. *Id.* Samsung is also leading provider of wearable devices in the United States. JDX-0002C, ¶235; CX-1558C; CX-1554; CX-1369.

The investments made by Samsung into the DI Products are qualitatively significant and substantial. SEA's U.S. activities and investments are critical to the local development, commercialization, and marketing of the DI Products in the United States. JDX-0002C, ¶236; CX-1696C, 24; JDX-0015C, 50-51.

Service to mobile product customers in the United States is also significant, as it enables Samsung to provide timely and effective service to its customers, and is an important component of Samsung's operations. JDX-0002C, ¶237; CX-1696C; JDX-32C, Ex. 11C, ¶11; JDX-0015C,

[REDACTED]

120, 140, 142-146; JDX-0045C, 49. The [REDACTED] team at SEA provides service to mobile product customers in the United States. *Id.* [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

Samsung's U.S. presence extends further through its partnership with U.S.-based institutions in connection with the DI Products. Samsung's [REDACTED] activities related to [REDACTED] also include [REDACTED]

[REDACTED]

[REDACTED]. JDX-0002C, ¶238; CX-1696C, 25; CX-0959C.

4. Samsung's Domestic Investments Are Expected To Continue

Samsung's commitment to its products and customers in the United States are ongoing.

[REDACTED]

[REDACTED] JDX-0002C, ¶240; JDX-0015C, 22, 26-29; CX-1695C. [REDACTED]

[REDACTED]

[REDACTED] JDX-0002C, ¶241; JDX-0015C, 22, 27-28.

[REDACTED]

[REDACTED] *Id.*

X. REMEDY & BONDING

The appropriate remedies in this Investigation are a permanent limited exclusion order ("LEO") and a permanent cease-and-desist order ("CDO") against Respondents, their subsidiaries, related companies, and agents. These remedies are warranted and necessary to protect Samsung's DI from Respondents' unfair acts. Oura has presented no evidence to support any exemptions or

delays in these remedial orders.

A. Limited Exclusion Order (LEO)

The appropriate remedy in the event of a violation finding under 19 U.S.C. § 1337(d)(1) is a permanent LEO directed to each Respondent (including its subsidiaries, predecessors, affiliates, agents, successors, and assigns) barring and excluding from entry into the U.S. wearable devices that infringe one or more of the Asserted Claims. *See Certain Fitness Devices, Streaming Components Thereof, & Sys. Containing Same*, 337-TA-1265, Comm’n Op. at 75 (Mar. 23, 2023) (holding that the LEO applies to covered articles unless products are “explicitly adjudicated as noninfringing”). If the Commission finds a violation of Section 337, an exclusion order “shall” issue against all of Respondents’ infringing products. *See* 19 U.S.C. § 1337(d)(1).

Respondents have not carried their burden to show that the LEO should have delays, carveouts, or exemptions. *See, e.g., Certain Automated Media Library Devices*, Inv. No. 337-TA-746, ID at 122, 2012 ITC LEXIS 1823, at *207 (June 20, 2012). For instance, Respondents have asserted that any LEO should contain a twelve-month transition period but have not provided any factual basis to justify implementation of such a period here. *See, e.g., Certain Mobile Devices, Associated Software, & Components Thereof*, Inv. No. 337-TA-744, Comm’n Op., 2012 WL 3715788, at *15 (June 5, 2012). Indeed, Respondents have no non-accused ring products to which they could shift production and no noninfringing alternative has been established. *See id.* Respondents also have not identified any third-parties who would be adversely affected or damaged by an LEO. *See Certain Mobile Devices*, 2012 WL 3715788, at *15. Further, there is no evidence that consumer demand cannot be satisfied by competing ring products sold by Samsung or other licensed entities. *Id.*

Respondents have also failed to establish that service and repair exceptions are warranted.

[REDACTED]

[REDACTED]

“The Commission [] has declined to issue service and repair exemptions to limited exclusion orders where the record contains insufficient evidence regarding the burdens and expenses that would be imposed on third parties in the absence of an exemption.” *Certain Wet Dry Surface Cleaning Devices*, Inv. No. 337-TA-1304, 2023 WL 3093539, *2-3 (ITC Apr. 7, 2023) (collecting cases). Such is the scenario here. Although Respondents have provided testimony that Accused Products may be subject to warranty obligations, Respondents have failed to establish how an LEO would render Respondents unable to satisfy any such obligations and have not shown any detrimental effect on customers without a service and repair exception. *Id.* [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *See, e.g., JX-27C (Murrin), 77:11-78:9, 90:23-91:9.*

In view of the dearth of information about what the actual impact may be on consumers, and no evidence that consumer issues cannot be adequately redressed through refunds, a service and warranty repair exemption is not warranted. *See, e.g., Certain Magnetic Data Storage Tapes and Cartridges Containing the Same (II)*, Inv. No. 337-TA-1076, ID at 174 (Oct. 25, 2018), *affirmed by Comm’n Op. at 61-62* (June 20, 2019) (denying exemption because respondent failed to provide sufficient evidence). However, if one is issued, the cutoff date should be “the date the Commission’s orders issue” when “the public is put on notice of a violation.” *Certain Light-Based Physiological Measurement Devices & Components Thereof*, 337-TA-1276, Comm’n Op. at 107 n.72 (Nov. 14, 2023) (EDIS ID 808521) (dissenting views of Commissioner Kearns).

B. Cease and Desist Order (CDO)

The appropriate remedy in the event of a violation finding under 19 U.S.C. § 1337(d)(1) is

[REDACTED]

additionally a CDO directed to each Respondent barring the importing, selling for importation, marketing, demonstrating, distributing, repairing, refurbishing, offering for sale, selling after importation, or transferring inventory to the United States of all wearable devices that infringe one or more of the Asserted Claims. Respondents have commercially significant inventories, warranting CDOs to prevent Respondents from undercutting the remedy provided by an LEO. *See, e.g., Certain Digital Models, Digital Data, & Treatment Plans for Use in Making Incremental Dental Positioning Adjustment Appliances, the Appliances Made Therefrom, & Methods of Making the Same*, Inv. No. 337-TA-833, Comm’n Op. at 147 (Apr. 9, 2014). “[T]here is no lower limit on the number of articles a domestic respondent must have in inventory before that inventory can be found to be ‘commercially significant’” and the presence of units “held in ‘distribution centers’ demonstrates the units are meant for and capable of being distributed to consumers throughout the United States thereby harming” a complainant. *Certain Agricultural Vehicles and Components Thereof*, Inv. No. 337-TA-487, Comm’n Op. at 14 (Sept. 24, 2004); *Certain Audio Players and Components Thereof (II)*, Inv. No. 337-TA-1330, ID on Violation and RD at 194 (Sept. 15, 2023).

Respondents hold commercially significant domestic inventories of its Accused Products warranting a CDO. Specifically, Oura does not dispute that it maintains commercially significant inventory of the accused Oura Ring products in the US. JX-74C at 2-4. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

C. Bonding

If the Commission enters an LEO or CDO, a respondent may continue to import and sell its products during the PRP under a bond in an amount “sufficient to protect the complainant from any injury.” 19 U.S.C. § 1337(j)(3). A bond is warranted here to protect Samsung from injury. There is direct competition between Samsung’s DI Products and the Accused Products. For instance, Samsung considers the Accused Products to be direct competitors. RX-156C, RX-242C, JDX-2C, 33. As a result, there is a likelihood of injury to Samsung in the form of displaced sales, reduced market share, and/or price undercutting.

In the co-pending 1468 Investigation, Oura and its economic expert, John Jarosz, contended that [REDACTED] [REDACTED] set an established royalty rate for bond of [REDACTED] [REDACTED]. *See* CX-1697C, ¶¶201-203. Although Samsung disagrees that the alleged “established royalty rate” is so established, and disagrees with the underlying rationale for applying such a royalty rate to the accused products in the 1468 Investigation, to the extent the ALJ in that Investigation recommends and the Commission adopts Oura’s proposed rate as the established rate associated with the Oura Ring products, that rate should apply in this Investigation to the Galaxy Ring product as well.

XI. CONCLUSION

As explained herein, the evidence will show that a violation of Section 337 has occurred, and the ALJ should recommend and appropriate LEO, CDO, and bond to protect Samsung’s domestic industry and curtail infringement of the Asserted Claims.

Dated: August 10, 2026

Respectfully submitted,

/s/ D. Sean Trainor

D. Sean Trainor
Renia Zervos
Khanh Leon
Jacob Boesch
O'MELVENY & MYERS
1625 Eye Street
Washington D.C. 20006
Telephone: +1 202 383-5300

Ryan K. Yagura
Ben Haber
Nancy Schroeder
Grace McFee
Ohona Chowdhury
O'MELVENY & MYERS LLP
400 South Hope Street
Los Angeles, CA 90071
Telephone: (213) 430-6000

Mark Liang
Bill Trac
Rui Li
Sorin Zaharia
Eric T. Ong
O'MELVENY & MYERS LLP
Two Embarcadero Center, 28th Floor
San Francisco, CA 94111
Telephone: (415) 984-8700

Marc Pensabene
Laura Gore
Caitlin P. Hogan
Nate Legum
Joanne Bae
O'MELVENY & MYERS LLP
1301 Avenue of the Americas, 17th Floor
New York, NY 10019
Telephone: (212) 326-2000

John Kappos
Cason Cole
Frances Mackay
O'MELVENY & MYERS LLP



2801 North Harwood Street, Suite 1600
Dallas, TX 75201
Telephone: (972) 360-1900

Email: OMM-Samsung-Oura@omm.com

*Counsel for Complainants Samsung
Electronics Co., Ltd. and Samsung
Electronics America, Inc.*

CERTIFICATE OF WORD COUNT

The undersigned certifies that this brief complies with the word limitation set forth in Order No. 11 regarding pre-hearing briefs. The certified word count includes footnotes and excludes tables of contents, authorities, abbreviations, and asserted claims, words in figures, the word count certificate, signature block, and the certificate of service.

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/s/ D. Sean Trainor
D. Sean Trainor

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Investigation No. 337-TA-1478

The undersigned certifies that on August 10, 2026, true and correct copies of the foregoing document were served upon the following parties as indicated below:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, SW, Room 112 Washington, DC 20436	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☒ Via Electronic Filing (EDIS) ☐ Via Electronic Mail
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, D.C. 20436 Email: JohnsonHines1478@usitc.gov	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☒ Via Electronic Filing (EDIS) ☒ Via Electronic Mail
<i>Counsel for Respondents Ouraring Inc. and Oura Health Oy</i> Jasjit S. Vidwan James A. Fussell, III Saqib J. Siddiqui Bryan C. Nese MAYER BROWN LLP 1999 K. Street NW Washington, DC 20006 Tel: 202-263-5282 Robert G. Pluta Nicholas H. Ciulla MAYER BROWN LLP 71 S. Wacker Drive Chicago, IL 60606 Tel: 312-782-0600 Email: Oura-ITC@mayerbrown.com	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☐ Via Electronic Filing (EDIS) ☒ Via Electronic Mail

/s/ Brian A. Treggs

Brian A. Treggs
Senior IPT Specialist
O'Melveny & Myers LLP
400 South Hope Street
Los Angeles, CA 90071

CERTIFICATE OF SERVICE

Investigation No. 337-TA-1478

The undersigned certifies that on August 21, 2026, true and correct copies of the foregoing document were served upon the following parties as indicated below:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, SW, Room 112 Washington, DC 20436	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☒ Via Electronic Filing (EDIS) ☐ Via Electronic Mail
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, D.C. 20436 Email: JohnsonHines1478@usitc.gov	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☒ Via Electronic Filing (EDIS) ☒ Via Electronic Mail
<i>Counsel for Respondents Ouraring Inc. and Oura Health Oy</i> Jasjit S. Vidwan James A. Fussell, III Saqib J. Siddiqui Bryan C. Nese MAYER BROWN LLP 199 K. Street NW Washington, DC 20006 Tel: 202-263-5282 Robert G. Pluta Nicholas H. Ciulla MAYER BROWN LLP 71 S. Wacker Drive Chicago, IL 60606 Tel: 312-782-0600 Email: Oura-ITC@mayerbrown.com	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☐ Via Electronic Filing (EDIS) ☒ Via Electronic Mail

/s/ Brian A. Treggs

Brian A. Treggs
Senior IPT Specialist
O'Melveny & Myers LLP
400 South Hope Street
Los Angeles, CA 90071

CERTIFICATE OF SERVICE

Investigation No. 337-TA-1478

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The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, SW, Room 112 Washington, DC 20436	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☒ Via Electronic Filing (EDIS) ☐ Via Electronic Mail
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, D.C. 20436 Email: JohnsonHines1478@usitc.gov	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☒ Via Electronic Filing (EDIS) ☒ Via Electronic Mail
<i>Counsel for Respondents Ouraring Inc. and Oura Health Oy</i> Jasjit S. Vidwan James A. Fussell, III Saqib J. Siddiqui Bryan C. Nese MAYER BROWN LLP 199 K. Street NW Washington, DC 20006 Tel: 202-263-5282 Robert G. Pluta Nicholas H. Ciulla MAYER BROWN LLP 71 S. Wacker Drive Chicago, IL 60606 Tel: 312-782-0600 Email: Our-ITC@mayerbrown.com	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☐ Via Electronic Filing (EDIS) ☒ Via Electronic Mail

/s/ Brian A. Treggs

Brian A. Treggs
Senior IPT Specialist
O'Melveny & Myers LLP
400 South Hope Street
Los Angeles, CA 90071